CPC — Final Exam Cluster Notes

Code of Civil Procedure, 1908 & Limitation Act, 1963 · Osmania University LLB (3 YDC) · Semester V

Ready-to-read, ready-to-write answers for **Part A**, **Part B** & **Part C** · built from **127 questions** of the **2013–2020** papers, checked against the **2021, 2022, 2023 & 2025** papers · by **lawsticker-ai.com**

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How to use these notes

- Each **cluster** = one topic family that keeps coming back. Its first box lists **every past question** from it (A = short note, B = essay, C = problem).
- **Part B essays** are written to be **copied as they are** — headings, bare-act lines, tables, cases, conclusion. **Part A** = the first 2 paragraphs of the essay or the pink short-note box. **Part C** = the green **IRAC** box (Issue · Law · Apply · Decision).
- Skim mode: read only the **bold** and yellow words, the ★ golden rules, the **case 'Trick' lines** and the 🧠 memory tricks.
- Clusters are in **syllabus order**. **Tier 1 first** if time is short — eight clusters that carry about **two-thirds** of every paper.

What the paper looks like

Part	Questions	Pattern seen 2013–2020
A	8 short notes (Q1–8) · answer 5	Q1–2 Unit I almost always · **a Limitation short note in 10 of 12 papers** (often Q8)
B	4 essays (Q9–12) · answer 2	Q9 Unit I · Q10 Unit II · Q11 Units III–IV · **Q12 = Limitation in 10 of 11 papers**
C	4 problems (Q13–16) · answer 2	jurisdiction, parties, RJ, Govt notice, execution — **Q16 usually Limitation**

Writing formula

Part	Write in this order
A	**definition** → **section/order** → 3–4 **key points** → **one case** → one-line conclusion
B	**intro + meaning** → **bare act line** → **essentials / kinds** (table or diagram) → **explanations & exceptions** → **2–3 cases with stories** → **differences** → **conclusion**
C	**Issue** (one line) → **Law** (sections + case) → **Apply** to the facts → **Decision** (clear yes/no + remedy)

The 16 clusters — priority map (2013–2025)

#	Cluster	Unit	Tier	Asked
1	Jurisdiction & suits of civil nature	I	T1	12 + 5 = 17
2	Res judicata, sub judice, foreign judgments	I	T2	7 + 5 = 12
3	Parties, cause of action, frame of suit (+ death of parties)	I	T1	11 + 3 = 14
4	Summons & witnesses	I/III	T3	3
5	Pleadings, plaint, amendment, return & rejection	II	T1	12 + 4 = 16
6	Written statement, set-off, counter-claim, issues	II	T2	7 + 5 = 12
7	Non-appearance & ex parte	III	T3	3 + 1 = 4
8	Stages of a suit; judgment, decree & orders	II–III	T2	3 + 4 = 7
9	Interim orders: injunction, receiver, commission, attachment, caveat	III–IV	T1	13 + 2 = 15
10	Execution: modes, arrest, attachment & sale	III	T1	11 + 5 = 16
11	Government suits & public matters	IV	T2	8 + 2 = 10
12	Minors, indigent & interpleader suits	IV	T2	7 + 4 = 11
13	Appeals, reference, review, revision	IV	T1	8 + 5 = 13
14	Limitation I: object, principles, S.3–5, 9, 27	V	T1	11 + 2 = 13
15	Limitation II: disability, computation, S.18–19, condonation	V	T1	11 + 7 = 18
16	Safety net: topics rarely or never asked	I–V	T3	0 + 3 = 3

Asked = questions in the **2013–2020** papers **+** questions in the **2021, 2022, 2023 & 2025** papers (previous year question paper analysis). Every recent question fits one of these 16 clusters. This shows what **has** been asked — not a promise of what **will** be asked.

Cluster 1

Jurisdiction of Civil Courts & Suits of Civil Nature

TIER 1 · must prepare | Unit I · S.3, 6, 9, 15–21 | asked 17× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Civil court's jurisdiction · A 2015 Civil suit · A 2016 Territorial jurisdiction · A 2017 Pecuniary jurisdiction · A 2019 Subordination of courts; Pecuniary jurisdiction · A 2020 Place of suing · B 2014 Jurisdiction of courts to try suits · B 2019 Kinds of jurisdiction · C 2013 Is 'B a farmer?' triable (S.9) · C 2016 ₹5 lakh NI suit in JCJ court · C 2018 Maintenance suit in JCJ court
Recent papers (2021–2025): A 2021 Pecuniary jurisdiction · A 2022 Territorial jurisdiction · A 2023 Pecuniary jurisdiction · C 2022 Suit to be restored to a caste list · C 2023 Jaipur suit, Chennai branch, Delhi head office

Core idea

Jurisdiction = the **power of a court to hear and decide** a case. A civil court can try **every suit of a civil nature** unless a law **expressly or impliedly bars** it (**S.9**). Then the suit must be filed in the **right court** — by **money value** (pecuniary), by **place** (territorial) and by **kind of dispute** (subject matter).

Real life

Ravi's neighbour builds on his land in Kukatpally. Is it a civil dispute? **Yes** — a right to property (S.9). Which court? The **lowest competent court** by value (S.15), where the **land is** (S.16) — the Junior Civil Judge at Kukatpally if the value is within its limit.

PART A · SHORT NOTE

Suit / Civil suit

A **suit** is a **civil proceeding instituted by presenting a plaint** (**S.26, O.IV**). It is not defined in the CPC; the Supreme Court explains it as a proceeding in which a person claims a **civil right** against another before a civil court. Four essentials: ① **opposing parties** ② **subject matter** (the right in dispute) ③ **cause of action** ④ **relief** claimed.

A **suit of civil nature** (S.9) is one whose **principal question is a civil right** — property, office, money, status, contract. A suit about a **religious office** is civil even if it turns on ceremonies (**Explanation I**).

So, every civil right finds a court: ***ubi jus ibi remedium****.*

PART A · SHORT NOTE

Subordination of courts (S.3)

For the CPC, the **District Court** is subordinate to the **High Court**, and every civil court **below the District Court** and every **Court of Small Causes** is subordinate to the **High Court and the District Court**. The ladder: **Junior Civil Judge → Senior Civil Judge → District Judge → High Court → Supreme Court**. The superior court supervises, transfers (S.24) and hears appeals and revisions.

PART A · SHORT NOTE

Pecuniary jurisdiction (S.6, S.15)

S.6: a court can try only suits whose **value does not exceed its pecuniary limit** (set by the State Civil Courts Act). **S.15**: file in the **court of the lowest grade** competent to try it — to keep higher courts free. Value is what the **plaintiff states** in the plaint (Suits Valuation Act). An objection must be raised at the **earliest** and causes no reversal unless **failure of justice** (**S.21(2)**; Suits Valuation Act S.11).

Telangana: limits are fixed by the Telangana Civil Courts Act, 1972 — always check the current notification.

PART A · SHORT NOTE

Territorial jurisdiction / Place of suing (S.16–20)

Suit	Where
Immovable property (recovery, partition, foreclosure, sale, right, compensation) — S.16	where the property is situated
Relief through defendant's personal obedience — S.16 proviso	where property is **or** where defendant resides/works
Property in several courts' limits — S.17	any one of them
Wrong to person or movables — S.19	where wrong done **or** where defendant resides (plaintiff's choice)
All other suits (contracts, money) — S.20	where defendant resides / carries on business **or** where cause of action arises, wholly or in part
Corporation — S.20 Explanation	its **principal office**, or a **subordinate office** where the cause arose (*Patel Roadways v Prasad Trading*, 1991)

Objection (S.21): only at the **first instance**, before issues, and only if **failure of justice**; **S.21A**: no fresh suit to set aside a decree on this ground.

⚖️ **A.B.C. Laminart v A.P. Agencies** (1989)

Story — A Salem buyer (A.P. Agencies) dealt with a Gujarat seller (ABC Laminart) whose order form said disputes were '**subject to Kaira jurisdiction**'. The buyer sued at **Salem**; the seller said only Kaira could try it.

Held — **Cause of action** = bundle of facts; part of it arose at **both** places, so both courts had jurisdiction. Parties **can agree** to choose **one of two competent courts**, but the clause must clearly **exclude** the other (words like '**only**', '**alone**', '**exclusive**'); this clause didn't, so **Salem could try it**. Parties can never confer jurisdiction on a court that has **none**.

Why it matters — Leading case on **cause of action + jurisdiction clauses**.

Trick — Choose between competent courts — never create one.

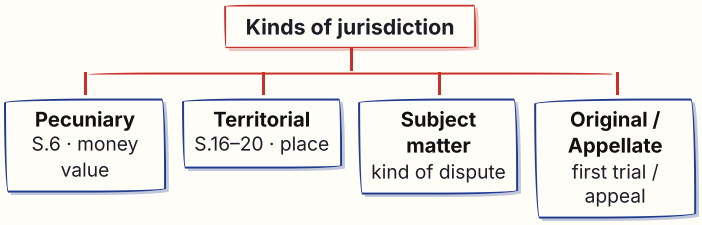
PART B · ESSAY *Jurisdiction of civil courts — meaning, kinds and S.9*

Q. Discuss the jurisdiction of civil courts to try suits. What are the various kinds of jurisdiction? (2014, 2019)

1. Introduction

Jurisdiction means the **authority of a court to decide matters** brought before it. The word comes from *juris* (law) and *dicere* (to speak) — the power **to speak the law**. A decision given without jurisdiction is a **nullity**; it can be challenged anywhere, even in execution (**Kiran Singh v Chaman Paswan**). The CPC does not define jurisdiction; it is fixed by **statute** — the CPC, the Civil Courts Act, and the Suits Valuation Act — and **parties cannot create it by consent**.

2. Kinds of jurisdiction



- **Pecuniary** — by the **value** of the suit (**S.6**). A JCJ can't try a suit above its limit.
- **Territorial / local** — by **place**: where the land is, the wrong is done, or the defendant lives (**S.16–20**).
- **Subject matter** — some courts can try only some disputes: **Small Causes Court** can't try partition; **Family Court** alone tries matrimonial and maintenance matters where it exists.
- **Original v appellate** — trial at first instance v hearing appeals (District Court has both).
- **Exclusive v concurrent** — only one court v two or more courts (then the plaintiff chooses; parties may **agree** on one of two competent courts — *ABC Laminart*).
- **General v special / limited** — civil court v tribunals (DRT, Rent Controller, Consumer Commission).

3. S.9 — the basic rule

📖 *Bare Act — CPC S.9*

"The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred." **Expl. I**: a suit about a right to property or to an office is civil even if it depends on religious rites. **Expl. II**: immaterial that no fees attach to the office.

- **Conditions**: ① suit must be **of a civil nature** ② cognizance must **not be barred**.
- **Civil nature** = the main question is about a **civil right** (property, office, money, status, contract). **Not civil**: purely religious rites, caste questions, political questions, voluntary payments, dignity alone.
- **Express bar**: a statute says civil courts shall not try it — e.g. **Industrial Disputes Act** (rights created by it), **RDB Act S.18**, **SARFAESI S.34**, Rent Control Acts, Income Tax.
- **Implied bar**: from the **scheme of a special law** or **public policy** — e.g. suits about acts of State, or where a special tribunal is given exclusive power.

4. Exclusion is not easily inferred — Dhulabhai principles

⚖️ **Dhulabhai v State of Madhya Pradesh** (1968)

Story — Tobacco traders paid sales tax under a State Act that was later found **unconstitutional**. They filed civil suits for **refund**. The State said: the Act itself says no civil court shall question an assessment.

Held — Suits **maintainable**. A Constitution Bench gave **7 principles**: exclusion of civil courts must be **express or clearly implied**; even then civil courts can act if the tribunal **did not follow the Act**, broke **natural justice**, or the provision is **ultra vires**; an adequate alternative remedy matters.

Why it matters — The **leading test** for every 'is the civil court barred?' question (Part B & C).

Trick — Tax-man said "no court" — but an **illegal tax** still goes to court.

⚖️ **Kiran Singh v Chaman Paswan** (1954)

Story — A suit for land and mesne profits was **undervalued**; it went to the wrong appellate court. After losing, the plaintiffs themselves said the appellate decree was **void** because the valuation was wrong.

Held — A decree passed **without inherent jurisdiction** is a **nullity**. But a mistake in **pecuniary or territorial** jurisdiction does not void it unless it caused **prejudice / failure of justice** (S.21; Suits Valuation Act S.11).

Why it matters — Draws the line: **subject-matter defect = void**; **place/value defect = only if prejudice**.

Trick — Lost the case, blamed the price tag — Court said no.

⚖️ **Premier Automobiles v Kamlekar Shantaram Wadke** (1976)

Story — Workers of a car company disputed an **incentive scheme** agreed under the industrial law; some of them filed a **civil suit** to stop it.

Held — Where a dispute concerns a right **created by the Industrial Disputes Act**, the remedy is **only** under that Act's machinery (conciliation, Labour Court, Tribunal) — civil court **impliedly barred**; where it is a **common-law right**, the civil court is open.

Why it matters — Classic example of an **implied bar** under S.9.

Trick — Right born in the ID Act lives and dies in the ID Act.

⚖️ **Most Rev. P.M.A. Metropolitan v Moran Mar Marthoma** (1995)

Story — The Malankara church split into two factions (Catholicos v Patriarch); they fought over **church properties and religious offices** in civil courts.

Held — S.9 is **very wide**; a suit about a **religious office** or worship rights is a **suit of civil nature** (Explanation I) and civil courts must decide it.

Why it matters — Religious-office disputes are civil.

Trick — Church office = civil right.

Also: **Ganga Bai v Vijay Kumar** (1974) — there is an **inherent right to sue** in a civil court unless barred, but **no inherent right of appeal**.

✅ *Conclusion (write this)*

S.9 opens the court door to **every civil right**; the door closes only by an **express or clear implied bar**, and even then not for **illegal or ultra vires** action (Dhulabhai). The right court is then picked by **value (S.6, 15)**, **place (S.16–20)** and **subject matter**; wrong place/value is cured unless **prejudice** (S.21).

🧠 *Memory trick*

Kinds = **P-T-S-O**: **P**ecuniary · **T**erritorial · **S**ubject matter · **O**riginal/appellate. S.9 test = **C-B**: Civil nature + not Barred.

PART C · PROBLEM *2013*

Q. In a suit for specific performance of a sale of agricultural land by A to B, the court frames an incidental issue: 'whether B is a farmer'. Can the court decide it? (S.9)

Issue — Can a civil court decide an incidental question (whether B is an agriculturist) inside a specific performance suit?

Law — **S.9** — civil courts try all civil suits and **all questions arising in them** unless barred. **Dhulabhai**: exclusion only if **express or clearly implied**. Land-reform / tenancy laws often say only a **revenue authority** may decide 'who is an agriculturist' and require the civil court to **refer** that question.

Apply — Specific performance is a **civil suit**; the court can decide every issue needed to dispose of it. **If** the State land law vests the farmer question **exclusively** in a revenue officer, the court must **refer / stay** on that issue and decide the rest; if not, it decides it itself.

Decision — **Yes, the civil court has jurisdiction to decide the incidental issue — unless a special land law expressly reserves it for a revenue authority, in which case it must refer that issue.**

PART C · PROBLEM *2016*

Q. A sues B for ₹5,00,000 on a negotiable instrument in a Junior Civil Judge's court. Is the suit maintainable?

Issue — Is the JCJ court pecuniarily competent for a ₹5 lakh money suit?

Law — **S.6** (pecuniary limits) · **S.15** (lowest competent court) · **S.20** (place) · State **Civil Courts Act** limits · **O.VII r.10** (return of plaint) · **O.XXXVII** (summary suits on negotiable instruments where notified).

Apply — A money suit on a promissory note/cheque is a **civil suit** (S.9). It must go to the **lowest court** whose limit covers ₹5 lakh. Under the **Telangana Civil Courts Act** the JCJ's present limit is **above ₹5 lakh**, so it is within its power. If the limit were lower, the plaint would be **returned** (O.VII r.10), not dismissed.

Decision — **Maintainable in the JCJ court if ₹5 lakh is within its pecuniary limit (it is under the present Telangana limits); else plaint returned for presentation to the proper court.**

PART C · PROBLEM *2018*

Q. A suit for maintenance is filed in the Junior Civil Judge's court. Is it maintainable?

Issue	Can an ordinary civil court try a maintenance suit?
Law	**S.9** + **implied/express bar** by a special law: **Family Courts Act, 1984, S.7 & S.8** — where a **Family Court** is set up, it has **exclusive jurisdiction** over suits for **maintenance** (S.7 Expl. (f)); civil courts in that area **cannot** try them. Maintenance is otherwise a civil right (HAMA S.18–20).
Apply	In **Hyderabad and districts with a Family Court**, the JCJ's court is **barred**. In an area **without** a Family Court, the JCJ may try it as an ordinary civil suit within its pecuniary limit.
Decision	**Not maintainable where a Family Court exists (S.8 Family Courts Act — express bar under S.9); maintainable in a JCJ court only where no Family Court has been established.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
A's land is in Warangal; B lives in Hyderabad. A sues for possession in Hyderabad.	**Return** the plaint — land suits only where the **property is** (S.16(a)); proviso doesn't apply to possession.
Contract made in Mumbai, broken in Pune; defendant lives in Hyderabad.	Sue in **Mumbai, Pune or Hyderabad** — where the cause arose (wholly/partly) or defendant resides (**S.20**).
Parties agree that 'only Delhi courts' will try disputes; nothing happened in Delhi.	Clause **void** — parties **can't confer** jurisdiction on a court that has none (*ABC Laminart*).
Defendant objects to territorial jurisdiction for the first time in appeal.	**Not allowed** — S.21 needs objection at the **first instance** + **failure of justice**.
Worker sues in a civil court to enforce a right given only by the ID Act.	**Barred** — implied bar (*Premier Automobiles*); go to the ID Act forum.
Suit for a right to a temple priest's office.	**Civil suit** — S.9 Expl. I (religious office).
A sues to be restored to his caste list (2022).	**Not maintainable** — a purely **caste/social** question is not civil; only if a **civil right** (property, office) depends on it.
Delhi company, Chennai branch deal; customer sues in Jaipur (2023).	Jaipur has **no jurisdiction** unless part of the cause arose there; sue at **Chennai** (subordinate office where cause arose) or Delhi (S.20 Expl.; *Patel Roadways*).

⚠️ *Examiner's watch*

Examiners love the **S.9 + Dhulabhai** combo. Always write: **definition → 2 conditions → express/implied bar with examples → Dhulabhai principles → conclusion**.

Cluster 2

Res Judicata, Res Sub Judice & Foreign Judgments

TIER 2 · important | Unit I · S.10–14 | asked 12× in 2013–2025 papers

How it was asked (2013–2020): A 2017 Foreign judgments · A 2018 Sub judice and res judicata · B 2014 Meaning, principle, policy & effect of RJ · B 2015 RJ with illustrations · B 2016 Distinguish sub judice & RJ · C 2013 Owner suit dismissed → new suit as mortgagee · C 2015 Second eviction suit while first pending
Recent papers (2021–2025): A 2021 Res sub judice · A 2025 Sub judice · B 2022 Res judicata — meaning & application · C 2023 Two suits on same trade name in two courts · C 2023 Second suit as trustee — constructive RJ?

Core idea

Res judicata (S.11) = a matter **already decided** finally cannot be **tried again** between the same parties. **Res sub judice** (S.10) = a matter **still pending** in an earlier suit — the **later suit's trial is stayed**. Both stop **multiplicity** and **conflicting decisions**.

Real life

Lakshmi sued her brother for her share of a Warangal house and **lost** after full trial. She files the same suit again in Hanamkonda. Barred — **res judicata**. If the first suit were still **pending**, the second court would **stay** its trial — **sub judice**.

PART B · ESSAY

Doctrine of res judicata — meaning, principle, policy, conditions and effect

Q. Explain the doctrine of res judicata with illustrations. (2014, 2015, 2018)

1. Meaning & maxims

Res = thing/matter, *judicata* = adjudged. **Res judicata** means **"a thing already decided"**. Once a competent court has **finally decided** a matter between parties, the same parties cannot fight it again. It rests on three maxims: **nemo debet bis vexari pro una et eadem causa** (no one should be vexed twice for the same cause), **interest reipublicae ut sit finis litium** (in the State's interest litigation must end), and **res judicata pro veritate accipitur** (a judicial decision must be accepted as correct).

Bare Act — CPC S.11

"No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit ..., and has been heard and finally decided by such Court."

2. Conditions (all must exist)

1. **Matter directly and substantially in issue** in both suits (not collaterally or incidentally).
2. **Same parties** or parties claiming under them (successors, purchasers).
3. **Same title** — same **capacity** (e.g. personally v as trustee is different).
4. **Competent court** — the first court could have tried the later suit (Expl. II: competence without regard to appeal; Expl. VIII: courts of limited jurisdiction too).
5. **Heard and finally decided** — on merits; a dismissal for default or withdrawal is not RJ (other bars apply).

3. The Explanations — the exam detail

Expl.	Rule in simple words
I	'former suit' = **decided first**, whether filed first or not
II	competence decided **without** regard to appeal
III	matter must be **alleged by one and denied/admitted** by the other
IV	Constructive RJ: a matter that might and ought to have been raised is deemed raised and decided
V	relief claimed but **not expressly granted** = **refused**
VI	**representative suits** (O.I r.8, S.91, 92, PIL) bind all interested persons
VII	applies to **execution** proceedings
VIII	decision of a court of **limited jurisdiction** operates as RJ

Illustrations (write 2–3 of these)

① **A sues B** for rent of 2023; B pleads he is not a tenant; court finds he **is**. In a later suit for 2024 rent, B **can't** deny the tenancy — **res judicata**. ② A sues B for a house claiming **sale**; dismissed. A can't sue again claiming **gift** existing then — **constructive RJ** (Expl. IV). ③ A sues as **executor** of his father's will, loses; he may still sue in his **personal** right — **different title**. ④ Villagers' representative suit (O.I r.8) on a pathway fails — **all villagers** are bound (Expl. VI).

4. Res judicata in other places

- **Between stages of the same suit** — a point decided at one stage binds later stages (**Satyadhyan Ghosal**).
- **Writ petitions** — a writ dismissed on merits bars a fresh writ (**Daryao**).
- **Public interest litigation** — constructive RJ applies (**Forward Construction**).
- **Not** to: matters of pure law contrary to statute, orders without jurisdiction, habeas corpus, tax years (each year is separate), and decrees obtained by **fraud**.

⚖️ **Satyadhyan Ghosal v Deorajin Debi** (1960)

Story A landlord had an **eviction decree**; a new tenancy law came; the tenants asked the court to set it aside. The question decided at an **earlier stage** was raised again at a **later stage of the same litigation**.

Held RJ applies **between two stages of the same proceeding**: a matter decided at an earlier stage can't be re-opened at a later stage of the same suit (though an interlocutory order can be questioned in an appeal against the final decree — S.105).

Why it matters Extends RJ **inside one suit**.

Trick Same suit, second round — already decided.

⚖️ **Daryao v State of U.P.** (1961)

Story Petitioners lost writ petitions under **Art. 226** in the High Court on merits, then filed **Art. 32** petitions in the Supreme Court for the same relief.

Held A decision on merits by a competent court binds; the **same matter can't be re-agitated** under Art. 32 — RJ is a rule of **public policy**, applies to **writs**.

Why it matters RJ is **not just S.11**; it's a general principle.

Trick High Court said no — Supreme Court won't hear the same story again.

⚖️ **Forward Construction Co. v Prabhat Mandal** (1986)

Story A builder got permission to build in **Bombay's Backbay**; one citizens' group's writ failed; another group filed a fresh PIL on the same project.

Held **Explanation VI + constructive RJ** apply to **PIL**: a bona fide public litigation binds the public; new grounds that **ought** to have been raised are barred.

Why it matters Constructive RJ in **public law**.

Trick One public fight per project.

⚖️ **Gulam Abbas v State of U.P.** (1982)

Story In Varanasi, Shia and Sunni Muslims had fought for decades over the right to perform religious rites on certain plots; earlier **representative suits** had settled the Shias' rights, yet clashes continued.

Held Decrees in **representative suits** bind the whole community (Expl. VI); RJ is founded on **public policy** and is wider than S.11 — the earlier decided rights could not be reopened.

Why it matters RJ + **representative suits** + public policy.

Trick One community's decree binds the whole community.

Also: **Sheodan Singh v Daryao Kunwar** (1966) — when **connected suits** are heard together and one appeal is dismissed, the decision operates as RJ in the other.

5. Res judicata v Res sub judice v Estoppel

Point	*Res sub judice (S.10)*	*Res judicata (S.11)*	*Estoppel (BSA S.121)*
Stage	matter **pending**	matter **decided**	a **representation** made
Effect	**stays trial** of later suit	**bars** the suit/issue	**stops a party** from denying
Purpose	avoid **parallel trials**	**end** litigation	prevent **inconsistency** in conduct
Nature	procedural	rule of procedure + public policy	rule of **evidence**

✅ *Conclusion (write this)*

Res judicata gives **finality**: one fair, final decision between the same parties ends the matter — including points that **ought** to have been raised (Expl. IV). It protects courts from waste and parties from **harassment**, and applies to suits, **stages of a suit**, writs and PILs.

🧠 *Memory trick*

S.11 = **D-S-T-C-F**: **D**irectly in issue · **S**ame parties · same **T**itle · **C**ompetent court · **F**inally decided. Sub judice = **pending** · Judicata = **decided**.

PART A · SHORT NOTE *Res sub judice (S.10)*

S.10: no court shall **proceed with the trial** of a suit in which the **matter in issue is also directly and substantially in issue in a previously instituted suit** between the **same parties**, pending in the same or another court **in India** competent to grant the relief (or a court outside India set up by the Central Govt, or the Supreme Court). **Explanation**: pendency in a **foreign court** does not bar.

- bars the **trial**, not the **institution** — interim orders (injunction, attachment) can still be passed (**Indian Bank v Maharashtra State Co-op Marketing Fed.**, 1998)
- object: avoid **two parallel trials** and **conflicting decrees**
- court may **consolidate** suits under S.151

*Sub judice **pauses** the later suit; res judicata **closes** it.*

PART A · SHORT NOTE

Foreign judgments (S.13, 14, 44A)

A **foreign judgment** (S.2(6)) — judgment of a court outside India not set up by the Central Govt — is **conclusive** between the parties **except** where it: ① was given by a court **without jurisdiction**, ② was **not on the merits**, ③ refused to recognise **Indian law** or was based on a wrong view of **international law**, ④ was against **natural justice**, ⑤ was obtained by **fraud**, ⑥ sustains a claim for **breach of Indian law** (**S.13 (a)–(f)**). **S.14**: court **presumes** competence on a certified copy. **S.44A**: a decree of a **reciprocating territory** (UK, Singapore, UAE…) is **executed** in India like a district court decree; others need a **fresh suit** on the judgment.

Y. Narasimha Rao v Y. Venkata Lakshmi *(1991): a foreign divorce on a ground not known to the law under which the parties married is not recognised.*

🧠 **Memory trick**

S.13 exceptions = **C-M-I-N-F-B**: **C**ompetence · **M**erits · **I**ndian/International law · **N**atural justice · **F**raud · **B**reach of Indian law.

PART C · PROBLEM **2013**

Q. A sues B for possession claiming to be the owner; the suit is dismissed. A files another suit for possession of the same property as a mortgagee. Will A succeed?

Issue — Is the second suit barred by res judicata?

Law — **S.11 + Explanation IV (constructive RJ)**: any ground that **might and ought** to have been raised in the former suit is deemed decided. **Same title** means the **same capacity**, not the same ground of claim.

Apply — Both suits are between **A and B**, for **possession of the same property**, and A sues in his **own capacity** both times. His mortgagee right **existed** when he filed the first suit; he **ought** to have pleaded it as an alternative ground. Not raising it makes it **constructively decided** against him.

Decision — **A will not succeed — the second suit is barred by constructive res judicata (S.11 Expl. IV). (Also O.II r.2 — he must sue for the whole claim.)**

PART C · PROBLEM **2015**

Q. A files an eviction suit against B; while it is pending, A files another suit for the same relief in another court. Is the second suit maintainable?

Issue — Can a second suit on the same matter proceed while the first is pending?

Law — **S.10** (res sub judice): later suit's **trial is stayed** where the matter is directly and substantially in issue in a **previously instituted suit** between the **same parties**. **S.151**: court can stop **abuse of process**.

Apply — Same parties, same house, same relief, first suit **pending** in a competent court → all S.10 conditions met. The second court **cannot try** it; filing twice is also vexatious.

Decision — **The second suit can be filed but its trial must be stayed under S.10; the court may dismiss it as an abuse of process (S.151) and the result of the first suit will bind as res judicata.**

PART C · PROBLEM **More likely problems — quick decisions**

Problem	Decision · law
First suit by A v B dismissed for default; A files a fresh suit on the same cause.	Not RJ (not 'heard and finally decided') — but **barred by O.IX r.9** if dismissed under r.8; allowed after an r.3 dismissal.
Earlier suit decided by a Small Causes Court; the issue arises in a later title suit.	RJ only if that court was **competent** (S.11, Expl. VIII) — its incidental finding on title doesn't bind a title suit.
Second suit pending in Dubai on the same matter.	**No S.10 stay** — pendency in a **foreign court** is no bar (S.10 Expl.).
A loses as trustee, then sues personally for the same property.	**Not barred** — different **title** (capacity).
Writ petition dismissed on merits; same party files a civil suit for the same relief.	**Barred** — RJ applies to writ decisions (*Daryao*; *Gulam Abbas*).

Cluster 3

Parties to Suit, Cause of Action & Frame of Suit

TIER 1 · must prepare | Unit I · O.I, O.II, O.XXII | asked 14× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Cause of action · A 2014 Representative suits; Non-joinder & misjoinder; Cause of action · A 2015 Cause of action · A 2016 Parties to suit · B 2017 Necessary & proper parties · B 2020 Who can be joined as parties · C 2016 Non-joinder of necessary party · C 2019 Effect of non-joinder · C 2013 Death of plaintiff/defendant
Recent papers (2021–2025): A 2023 Cause of action · A 2025 Joinder of plaintiffs · C 2025 Non-joinder of necessary party

Core idea

A suit needs the **right people** (parties, **O.I**), the **right facts** (cause of action) and the **whole claim at once** (frame of suit, **O.II**). Missing a **necessary party** can sink the suit; missing a **proper party** only makes it less complete.

Real life

Three brothers co-own a shop in Secunderabad. A tenant stops paying rent. All three may sue **together** (same transaction — O.I r.1). If the tenant's brother-in-law runs the shop with him, he may be joined as a **defendant** (O.I r.3).

PART A · SHORT NOTE

Cause of action

Cause of action = the **bundle of essential facts** which the plaintiff must **prove**, if traversed, to get a judgment. It does **not** include the defendant's defence or the evidence. It must be stated in the plaint with the **date it arose** (**O.VII r.1(e)**); without it, the plaint is **rejected** (**O.VII r.11(a)**). It decides **jurisdiction** (S.20(c)), **limitation**, **joinder** (O.II r.3) and the **O.II r.2** bar.

ABC Laminart v A.P. Agencies *(1989): cause of action is a bundle of facts; a part of it arising in a place gives that court jurisdiction.*

PART A · SHORT NOTE

Non-joinder & misjoinder (O.I r.9)

Misjoinder = joining a person who **should not** be a party. **Non-joinder** = **omitting** a person who **should** be a party. **O.I r.9**: no suit shall be defeated by misjoinder or non-joinder — the court decides the case for the parties before it — **but this does not apply to non-joinder of a necessary party** (proviso, 1976). Objection must be taken at the **earliest** (**O.I r.13**), else **waived**. Court may **add or strike out** parties at any stage (**O.I r.10(2)**). Appellate court can't reverse for misjoinder unless it affects merits (**S.99**).

PART A · SHORT NOTE

Representative suit (O.I r.8)

Where **numerous persons have the same interest**, one or more may **sue or defend on behalf of all**, with the **court's permission**; **notice** to all interested (by publication); any interested person may apply to be made a party; no **abandonment, withdrawal or compromise** without notice; the decree **binds all** (S.11 **Expl. VI**). Examples: villagers' right of way, members of a society, worshippers of a temple.

*Purpose: avoid a **multiplicity** of suits.*

PART B · ESSAY

Parties to suit — who may be joined; necessary and proper parties

Q. Who are the parties to a suit? Explain necessary and proper parties. (2016, 2017, 2020)

1. Introduction

Every suit has two sides: the **plaintiff** (who sues) and the **defendant** (who is sued). **Order I** decides **who may join** a suit, how mistakes are corrected and how numerous persons are represented. The aim: decide **the whole dispute in one suit** and avoid **multiplicity**.

2. Joinder of plaintiffs (O.I r.1) and defendants (O.I r.3)

- Persons may join as **plaintiffs** where ① the **right to relief** arises from the **same act or transaction** (or series), and ② a **common question of law or fact** would arise if they sued separately.
- Persons may be joined as **defendants** on the same two tests.
- **r.4–7**: judgment may be given for/against any of them; plaintiff may sue in the alternative where in doubt whom to sue (**r.7**); joint and several liability — all need not be sued (**r.6**).

same act / transaction test 1 → common question test 2 → join O.I r.1 / r.3

3. Necessary and proper parties

Necessary party
one **without whom no effective decree** can be passed · there must be a **right to relief** against him · non-joinder is **fatal** (O.I r.9 proviso)

v/s

Proper party
one whose presence helps the court **decide completely** · no relief claimed against him · non-joinder **not fatal**

⚖️ **Kasturi v Iyyamperumal** (2005)

Story — A sued B for **specific performance** of B's agreement to sell land. Third persons claiming **independent title** to the land asked to be added as defendants.

Held — Two tests for a **necessary party**: ① a **right to relief** against him in respect of the matter, and ② **no effective decree** can be passed in his absence. Strangers with an **independent title** are neither necessary nor proper in a specific performance suit — they can file their own suit.

Why it matters — The **standard test** — quote it in every parties answer.

Trick — No relief + decree possible without him = stay out.

⚖️ **Mumbai International Airport v Regency Convention Centre** (2010)

Story — A hotel sued the **Airports Authority** about land use; the new airport operator wanted to join the suit.

Held — Plaintiff is **dominus litis** (master of the suit) and chooses whom to sue; a stranger is added under **O.I r.10(2)** only if **necessary or proper** — not just because he has a commercial interest.

Why it matters — Limits on **adding parties**.

Trick — Master of the suit picks the team.

4. Adding, striking out, substituting (O.I r.10)

- **r.10(1)**: suit filed in the name of the **wrong plaintiff** by a **bona fide mistake** → court may substitute the right one.
- **r.10(2)**: at **any stage**, on application or **suo motu**, the court may **strike out** an improper party or **add** a necessary/proper party.
- **r.10(4)**: amended plaint served on the added defendant · **Limitation**: as to the added party, the suit is deemed instituted on the date he is added (**Limitation Act S.21**).

5. Death of a party (O.XXII) — also asked

- **r.1**: suit does **not abate** if the **right to sue survives** (property, money) — but **personal actions die with the person** (*actio personalis moritur cum persona*: defamation, personal injury).
- **r.3 / r.4**: on death of a plaintiff/defendant, **legal representatives** are brought on record on application **within 90 days** of death (**Limitation Act Art. 120**); else the suit **abates** as to him.
- **r.9**: abatement may be **set aside** for **sufficient cause** (application within **60 days**, Art. 121; S.5 applies) · **r.6**: no abatement if death occurs **after hearing ends** (judgment pronounced anyway) · **r.10**: interest devolves during pendency → suit continued by/against the transferee with leave.

✅ *Conclusion (write this)*

O.I lets all persons connected by the **same transaction and common questions** join, protects the suit from defeat for mere **misjoinder/non-joinder**, but insists on **necessary parties** — because **no effective decree** can bind an absent necessary party (Kasturi).

🧠 *Memory trick*

Necessary = Can't decree without · Proper = Better with. Joinder test = **T + Q**: same **T**ransaction + common **Q**uestion.

PART A · SHORT NOTE *Frame of suit (O.II)*

- **r.1** frame the suit to give a **final decision** on the dispute and prevent further litigation
- **r.2** include the **whole claim**; omitting or relinquishing part → can't sue for it later; omitting one of several **reliefs** for the same cause → can't sue for it later **without leave**
- **r.3** a plaintiff may **join several causes of action** against the same defendant(s) · **r.4** with recovery of immovable property only: mesne profits, rent, breach of contract for it — others need **leave** · **r.6** separate trials if inconvenient

Gurbux Singh v Bhooralal (1964): to prove an **O.II r.2** bar, the defendant must place the **earlier plaint** on record to show both suits rest on the **same cause of action**.

⚖️ **Gurbux Singh v Bhooralal** (1964)

Story — Bhooralal first sued Gurbux Singh only for **mesne profits** from his land. Later he filed a second suit for **possession** of the same land. Gurbux said: "Barred — you should have claimed possession in the first suit (O.II r.2)."

Held — The O.II r.2 plea **failed**: the defendant must **prove** that both suits rest on the **same cause of action**, and for that the **earlier plaint must be produced** on record. A plea under O.II r.2 is a technical bar and must be **clearly established**.

Why it matters — How to raise/prove the **O.II r.2** bar.

Trick — No old plaint, no O.II r.2.

PART C · PROBLEM *2016 / 2019*

Q. X failed to include a necessary party in the suit. What is the effect of non-joinder of a necessary party?

Issue Does non-joinder of a necessary party defeat the suit?

Law **O.I r.9** proviso — rule that non-joinder doesn't defeat a suit does not apply to a necessary party; **O.I r.10(2)** — court may add a party at any stage; **O.I r.13** — objection at the earliest; **Limitation Act S.21**; **Kasturi** test.

Apply A **necessary party** is one without whom **no effective decree** can be passed. If X doesn't add him even after objection/opportunity, the court **cannot pass an effective decree**. The court may allow **adding** him under r.10(2) — but limitation runs against him from the date of addition.

Decision **Non-joinder of a necessary party is fatal — the suit is liable to be dismissed unless the party is added in time under O.I r.10(2). Non-joinder of a mere proper party does not defeat the suit.**

PART C · PROBLEM *2013*

Q. Discuss the law relating to continuance of a suit when the plaintiff or defendant dies. State its consequences.

Issue What happens to a pending suit on the death of a party?

Law **O.XXII r.1–10**; **Limitation Act Art. 120** (90 days to bring LRs), **Art. 121** (60 days to set aside abatement); maxim *actio personalis moritur cum persona*.

Apply If the **right to sue survives** (property, money), the **legal representatives** must be brought on record within **90 days**; if not, the suit **abates** as to the deceased (plaintiff side: abates; defendant side: abates against him). Abatement can be **set aside** on **sufficient cause**. **Personal** claims (defamation) end with death. No abatement if death is **after hearing** concludes.

Decision **Suit continues through LRs if the right survives and they are impleaded in 90 days; otherwise it abates (and a fresh suit on the same cause is barred — O.XXII r.9), unless abatement is set aside for sufficient cause.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
Plaintiff sues for defamation and dies during the suit.	Suit **abates** — personal action dies with the person (O.XXII r.1).
Defendant dies after arguments, before judgment.	**No abatement** — judgment pronounced (O.XXII r.6).
Three co-owners; one sues alone for eviction of a tenant.	Maintainable — a co-owner can sue for the benefit of all; others are **proper parties**.
A sues B for part of a loan, relinquishing the rest; later sues for the rest.	**Barred** — O.II r.2(2) (whole claim).
Villagers want to sue for a common grazing right.	**Representative suit** — O.I r.8, with permission + public notice.

Cluster 4

Summons, Service & Witnesses

TIER 3 · short-note level | Unit I/III · S.27–29, 133, O.V, O.XVI | asked 3× in 2013–2025 papers

How it was asked (2013–2020): B 2014 Provisions relating to summons after institution · C 2015 Defendant locks house to avoid summons · C 2020 Can the President be summoned as a witness?

> 💡 **Core idea**
> A **summons** tells the defendant: a suit is filed — **come and answer**. No one can be condemned **unheard** (*audi alteram partem*). The CPC gives a **ladder of modes** so that even a person who **hides** can be validly served.

PART B · ESSAY

Summons — issue, contents and modes of service

Q. Discuss the provisions relating to summons after institution of a suit. (2014)

1. Meaning & issue (S.27, O.V r.1)

A **summons** is a **document issued by the court** calling a person to **appear** — the defendant to **answer the claim** and file a **written statement**, or a witness to **give evidence / produce documents**. **S.27**: when a suit is duly instituted, summons may be issued to the defendant — to be served **within 30 days** of institution. **O.V r.1**: the defendant appears and files the written statement **within 30 days** of service (court may extend up to **90 days**). No summons if the defendant appears at the presentation of the plaint.

2. Contents (O.V r.1–8)

- **signed** by the judge/officer and **sealed**; copy of the **plaint** attached
- states whether for **settlement of issues** or **final disposal** (r.5) and the **date** (r.6)
- asks the defendant to bring his **documents** and witnesses (r.7–8)
- **personal appearance** only if he lives within the court's limits or nearby (r.4)

3. Modes of service (the ladder)

personal / agent
r.10–12 — tender a copy, take signature

⇩

adult family member
r.15 — not a servant

⇩

court's own modes
r.9: registered post, courier, fax, email

⇩

affixing
r.17 — refuses / can't be found

⇩

substituted service
r.20 — newspaper, court board, house

- **r.9A** plaintiff may also serve directly · **r.16** person served signs an **acknowledgement** · refusal = **deemed service** (r.9(5))
- **r.18–19** serving officer endorses the return; court may **examine** him and **declare** the summons duly served
- **Special persons**: public officer through the **head of office** (r.27), soldier through the **commanding officer** (r.28), prisoner through the **jail officer** (r.24), **company** at its registered office / to the secretary or director (**O.XXIX r.2**)
- **Outside the court's limits**: sent to the court there (**S.28**, r.21) · **outside India**: post, courier, fax, email (r.25), embassy (r.26), foreign officer (r.26A) · **S.29**: summons of **foreign courts** served in India as if Indian

> ✅ **Conclusion (write this)**
> The modes move from **personal** to **substituted** service so that notice is **real and fair** — once the court is satisfied of due service, the case may proceed **ex parte** if the defendant still stays away (O.IX r.6).

> 🧠 **Memory trick**
> **30 days · P-F-C-A-S**: **P**ersonal · **F**amily · **C**ourt's modes (post/email) · **A**ffix · **S**ubstituted.

PART C · PROBLEM — 2015

Q. The defendant evades summons by locking his house whenever the bailiff visits. How can the summons be served?

Issue How to serve a defendant who deliberately avoids service?

Law **O.V r.17** — when the defendant **refuses** or **cannot be found** after due diligence, the serving officer **affixes** a copy on the **outer door** or conspicuous part of the house; **r.19** — court examines the officer and declares service; **r.20 — substituted service** (newspaper, court notice board, house) when the court is satisfied he is **keeping out of the way**; **r.9** — post/courier/email.

Apply Locking the house to avoid the bailiff = **keeping out of the way to avoid service**. The bailiff affixes the summons (r.17) and reports; the court, satisfied, declares service or orders **substituted service** by publication (r.20), fixing a time for appearance.

Decision **Serve by affixture (O.V r.17) or substituted service (O.V r.20) — it is as effective as personal service; if he still doesn't appear, the court proceeds ex parte (O.IX r.6).**

PART A · SHORT NOTE

Service of foreign summons (S.29) & summons abroad (O.V r.25–26A)

S.29: summonses and other processes issued by a **civil or revenue court outside India** — to which the Central Government has **extended** this section by notification (and courts set up by it outside India) — may be **sent to Indian courts** and **served as if issued by them**. Reverse direction: a defendant **living abroad** with no agent in India is served by **post, courier, fax or email** (**O.V r.25**), through an **Indian embassy/political agent** (r.26), or through an **officer of that country** under a treaty (r.26A) — India has joined the **Hague Service Convention** (2006).

*Purpose: **international cooperation** so that a person can't escape a suit merely by living in another country.*

Summoning witnesses (O.XVI) — short points

- **r.1** list of witnesses within **15 days** of framing issues · **r.2** expenses deposited · **r.6** summons to **produce documents**
- **r.10–12** witness fails to appear → **warrant**, **attachment** of property, **fine** · **r.21** a party may be called as a witness
- **S.132** women who by custom don't appear in public are exempt from personal appearance · **S.133** exempts high dignitaries — examined on **commission** (**O.XXVI r.1**)

PART C · PROBLEM *2020*

Q. X wants the President of India as a witness in a civil suit. Can the court issue summons to the President?

Issue Can a civil court compel the President's personal attendance as a witness?

Law **S.133(1)** CPC: the **President**, **Vice-President**, **Speaker**, **Union & State Ministers**, **Judges of the SC & HCs** (and others notified) are **exempt from personal appearance**; their evidence is taken on **commission** (**O.XXVI r.1**). **Art. 361**: the President is not answerable to any court for official acts.

Apply The court cannot compel the President to come to court. If the evidence is truly needed, it may issue a **commission** to examine him at his office/residence (the exemption is a privilege, not a bar to evidence).

Decision **No summons for personal attendance — the President is exempt under S.133; evidence, if necessary, is recorded on commission (O.XXVI r.1).**

Cluster 5

Pleadings & Plaint — Rules, Amendment, Return & Rejection

TIER 1 · must prepare | Unit II · O.VI, O.VII | asked 16× in 2013–2025 papers

How it was asked (2013–2020): A 2014 Plaint · A 2016 Pleadings; Essentials of plaint · A 2018 Amendment of pleadings; Essentials of plaint · A 2020 Amendment of pleadings · B 2013 Plaint & rules of pleadings · B 2015 General rules of pleading · B 2016 Return v rejection of plaint · B 2018 Return v rejection · C 2014 Omitted facts — how to rectify · C 2020 Draft a plaint on a negotiable instrument
Recent papers (2021–2025): A 2022 Essentials of plaint · A 2025 Amendment of pleadings · B 2023 Plaint & essential contents · B 2025 Essentials of plaint & return

Core idea

Pleadings are the parties' **written statements of facts** — the **plaint** (plaintiff) and the **written statement** (defendant). The court decides **only what is pleaded**. Rule of gold: **state facts, not law, not evidence** — briefly, clearly, in paragraphs.

Real life

A plaint is like a **trailer of the film**: it tells the court **who, what, when, where and what relief** — without showing every scene (evidence) or the review (law).

PART B · ESSAY

Pleadings — meaning, object and general rules

Q. What are pleadings? Explain the general rules of pleading. (2013, 2015)

1. Meaning (O.VI r.1)

"Pleading" shall mean plaint or written statement (O.VI r.1). With leave, a **replication** and later pleadings are allowed (O.VIII r.9). Pleadings are the **foundation of the suit**: issues are framed from them (O.XIV) and **no evidence is allowed on a point not pleaded**.

2. Object

- tell each side **the case it has to meet** — no surprise at trial
- **narrow down** the real controversy so that **issues** can be framed
- keep a **permanent record** of what was in dispute (useful for **res judicata**, O.II r.2)
- save the court's **time** and the parties' money

3. The fundamental rule — O.VI r.2

Bare Act — CPC O.VI r.2(1)

Every pleading shall contain, and contain only, a statement in a concise form of the material facts on which the party relies, but not the evidence by which they are to be proved.

Rule	What it means
① **facts, not law**	state facts; the court applies the law (but mixed questions like custom may be pleaded)
② **material facts only**	facts needed to prove the claim/defence — missing one can fail the case
③ **not evidence**	how a fact will be proved is not pleaded
④ **concise form**	short, in **numbered paragraphs**, dates and sums in **figures** (r.2(2)–(3))

4. Other rules (O.VI r.4–18)

- **r.4 fraud, misrepresentation, breach of trust, undue influence, wilful default** — give **full particulars** with dates
- **r.6** condition precedent: its performance is **implied** — only non-performance must be stated
- **r.7 no departure**: a new ground inconsistent with the earlier pleading only by **amendment**
- **r.8–9** denial of a contract = denial of the **fact**, not its legality; contents of a document — state the **effect** briefly
- **r.10 malice, knowledge, intention** may be alleged as facts · **r.13 presumptions of law** need not be pleaded
- **r.14–15 signed** by the party and his pleader; **verified** (what is true to knowledge v belief) + **affidavit** (2002)
- **r.16 striking out** pleadings that are **unnecessary, scandalous, frivolous, vexatious**, likely to **delay** a fair trial, or an **abuse** of process
- **r.17–18 amendment** (below) · **r.14A** address for service

Forms of pleading: **Appendix A** of the CPC gives model forms (plaints for money lent, goods sold, possession; written statements). Use them with suitable changes (O.VI r.3).

Conclusion (write this)

Good pleadings = **material facts, briefly stated, signed and verified**. They decide the issues, the evidence allowed and the relief possible — **a case not pleaded is a case lost**.

Memory trick

O.VI r.2 = **F-M-N-C**: **F**acts not law · **M**aterial only · **N**ot evidence · **C**oncise.

PART A · SHORT NOTE

Striking out pleadings (O.VI r.16)

The court **may at any stage** order **striking out or amending** any matter in a pleading which is ① **unnecessary, scandalous, frivolous or vexatious**, ② tends to **prejudice, embarrass or delay** the fair trial, or ③ is otherwise an **abuse of the process** of the court. Purpose: keep pleadings **clean and relevant**; stop parties using them to **insult** or **delay**. Power used **sparingly** — not to decide disputed facts.

PART A · SHORT NOTE

Plaint & its essentials (O.VII r.1–8)

The **plaint** is the **plaintiff's pleading** — the document that **starts the suit** (S.26). It must contain (**O.VII r.1**):

1. name of the **court**
2. plaintiff's **name, description, residence**
3. defendant's **name, description, residence**
4. if plaintiff/defendant is a **minor or of unsound mind** — a statement to that effect
5. the **facts constituting the cause of action** and **when it arose**
6. facts showing the court has **jurisdiction**
7. the **relief** claimed
8. any **set-off** allowed or portion relinquished
9. **valuation** for jurisdiction and court fee

r.2 money suits: **precise amount** · **r.3** immovable property: **boundaries / survey numbers** · **r.6** if barred by time, the **ground of exemption** · **r.7** relief **specifically** claimed · **r.9** copies for service · **r.14** **documents relied on** + list filed with it.

PART B · ESSAY

Return of plaint v Rejection of plaint

Q. What is the difference between return of the plaint and rejection of the plaint? (2016, 2018)

1. Return of plaint — O.VII r.10, 10A, 10B

If the court finds it has **no jurisdiction** (pecuniary, territorial or subject matter), it **returns** the plaint **at any stage** to be **presented in the proper court**. The judge **endorses** the date of presentation and return, the party's name and the reasons. **r.10A**: before returning (after the defendant appears) it informs the plaintiff, who may ask the court to **fix a date** of appearance in the proper court. **r.10B**: appellate court may direct return to the proper court. After return, the suit **starts afresh** in the new court (**Exl Careers v Frankfinn Aviation**, 2020); time spent bona fide is excluded (**Limitation S.14**). An order of return is **appealable** (**O.XLIII r.1(a)**).

2. Rejection of plaint — O.VII r.11

Ground (r.11)	Note
(a) no cause of action disclosed	read the **plaint alone**, assume it true
(b) relief undervalued	after time to correct is not used
(c) insufficiently stamped	after time to pay the court fee
(d) barred by any law (limitation, S.80, res judicata…)	from the plaint's own statements
(e) not filed in duplicate	
(f) plaintiff fails to comply with r.9 (copies)	

- rejection may be ordered **at any stage**, even before summons; reasons recorded (r.12)
- rejection is a **decree** (S.2(2)) → **appealable** under **S.96**
- **r.13**: a **fresh plaint** on the same cause is **not barred**

⚖️ **T. Arivandandam v T.V. Satyapal** (1977)

Story — A tenant in Bangalore kept filing **one suit after another** with clever drafting to stop his **eviction**.

Held — Krishna Iyer J: read the plaint **meaningfully, not formally**; if **clever drafting** has created the **illusion of a cause of action**, nip it in the bud at the first hearing (O.VII r.11; O.X examination).

Why it matters — Courts must **reject vexatious plaints** early.

Trick — Clever drafting ≠ cause of action.

⚖️ **Dahiben v Arvindbhai Kalyanji Bhanusali** (2020)

Story — Sellers of land sued **years later** to cancel the registered sale deed, saying the full price was never paid.

Held — Plaint **rejected**: no real cause of action (remedy was to recover the price) and **barred by limitation**; courts must use r.11 to stop **sham suits**. Only the **plaint averments + documents** are seen (also **Saleem Bhai v State of Maharashtra**, 2003).

Why it matters — The latest full statement of **r.11 principles**.

Trick — Late regret isn't a cause of action.

3. Differences

Point	Return (r.10)	Rejection (r.11)
Reason	**wrong court** — no jurisdiction	**defect in the plaint** — six grounds
Result	plaint given back to file in the **proper court**	plaint **thrown out**; suit ends
Nature	an **order**	a **deemed decree** (S.2(2))
Remedy	**appeal** under O.XLIII r.1(a)	**appeal** under S.96; or a **fresh plaint** (r.13)
Stage	any stage	any stage, usually at the threshold

✅ *Conclusion (write this)*

Return sends a good plaint to the **right court**; **rejection** shuts out a **defective or barred plaint**. Both are early **filters** that save the court's time and protect defendants from **vexatious suits**.

🧠 *Memory trick*

Wrong **court** → **RE-TURN** (go elsewhere). Bad **plaint** → **REJECT** = **C-V-S-B-D-C**: Cause · Value · Stamp · Bar · Duplicate · Copies.

PART A · SHORT NOTE

Amendment of pleadings (O.VI r.17)

The court **may at any stage** allow either party to **alter or amend** its pleadings, on just terms, if **necessary to determine the real questions in controversy**. **Proviso (2002)**: no amendment **after the trial has commenced** unless, in spite of **due diligence**, the party **could not** have raised it earlier. Trial commences when **issues are framed** (**Vidyabai v Padmalatha**, 2009).

- **allowed**: bona fide, needed for the real dispute, **no injustice** to the other side that **costs** can't cure (**Revajeetu Builders**, 2009 — 6 tests)
- **refused**: changes the **nature** of the suit, takes away an **accrued right** (time-barred new claim), **mala fide**, after long delay without reason
- **r.18**: amend within the time allowed or **14 days** — else not without leave · amendments relate back to the date of the suit (generally)

Ganesh Trading Co. v Moji Ram *(1978): procedure is the handmaid of justice — amendments to be allowed liberally before trial.*

⚖️ **Revajeetu Builders & Developers v Narayanaswamy & Sons** (2009)

Story — Plaintiffs tried to amend the plaint late in the suit, adding new claims that changed its character.

Held — Laid down **6 factors**: ① is it needed to decide the **real controversy**? ② is it **bona fide**? ③ prejudice that **costs can't cure**? ④ refusing it would cause **injustice / multiplicity**? ⑤ does it change the **nature** of the case? ⑥ is the new claim **time-barred**? Liberal before trial; strict after.

Why it matters — The **checklist** for every amendment answer.

Trick — Real, bona fide, no prejudice, same nature, not barred.

PART C · PROBLEM *2014*

Q. A filed a declaration suit; he omitted certain facts and made inadvertent mistakes in his pleadings. What remedy does A have?

Issue — How can A correct omissions and mistakes in his plaint?

Law — **O.VI r.17** amendment (+ proviso) · **S.152/153** (clerical errors and general power to amend) · **O.VI r.18**.

Apply — The mistakes are **inadvertent** and the omitted facts are needed to decide the **real controversy**. If the trial has **not started** (issues not framed) the court should **allow liberally**; if it has, A must show he **could not** have raised them earlier despite **due diligence**. Costs may be imposed. The amendment must not change the **nature** of the suit.

Decision — **A should file an application to amend the plaint under O.VI r.17; it will be allowed if bona fide and necessary, subject to the due-diligence proviso after trial begins, and he must carry out the amendment within the time fixed (r.18).**

PART C · PROBLEM *2020*

Q. A wants to file a suit against B for recovery of ₹10,000 on a negotiable instrument. Draft a plaint.

Issue Drafting a money-recovery plaint (O.VII r.1).

Law **O.VII r.1–3, r.14**; **S.15, 20** (court & place); Court Fees Act; Limitation Art. 35 (on demand note — 3 years).

Apply

IN THE COURT OF THE JUNIOR CIVIL JUDGE, _

O.S. No. _ of 20

A, s/o _, aged , r/o _ ... **Plaintiff**

v.

B, s/o _, aged , r/o _ ... **Defendant**

PLAINT UNDER ORDER VII RULE 1 CPC

1. The plaintiff and defendant are as described above; addresses for service are as above.
2. On //20 the defendant borrowed ₹10,000 and executed a **promissory note** payable on demand with interest @ % p.a.
3. Despite demands and a notice dated //20 the defendant has not paid.
4. **Cause of action** arose on //20 (execution of note) and on //20 (demand) at , within this court's limits.
5. The suit is **within limitation** (filed within 3 years).
6. **Valuation** ₹10,000 + interest; court fee of ₹_ paid.
7. This court has **pecuniary and territorial jurisdiction** (S.15, 20).

Prayer: decree for ₹10,000 + interest @ % from till realisation; **costs**; any other relief.

Plaintiff · Advocate

Verification: paras 1–7 true to my knowledge. Verified at _ on _. (Affidavit + list of documents under O.VII r.14.)

Decision **A plaint with these nine essentials, verification and the list of documents is a valid plaint under O.VII.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
Plaint shows the claim arose 6 years ago; no exemption pleaded.	**Reject** — barred by law on its face (**O.VII r.11(d)**, O.VII r.6).
Suit for ₹30 lakh filed in a JCJ court.	**Return** under **O.VII r.10** to the competent court; not rejection.
Plaintiff wants to add a new time-barred relief at the stage of arguments.	**Refuse** — trial commenced, no due diligence, accrued right of defendant (O.VI r.17 proviso).
Pleading calls the defendant 'a known cheat and thief' without facts.	**Strike out** as scandalous (**O.VI r.16**).
Fraud alleged without dates or details.	Insufficient — particulars required (**O.VI r.4**).

Cluster 6

Written Statement, Set-off, Counter-claim & Issues

TIER 2 · important | Unit II · O.VIII, O.XIV, S.89 | asked 12× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Counter claim · A 2015 Set-off; Framing of issues · A 2020 Counter claim & set off · B 2013 Set-off; legal v equitable · B 2017 Set-off & counter-claim distinguished · B 2020 Differences between counter-claim and set-off
Recent papers (2021–2025): A 2021 Counterclaim · A 2022 Written statement · A 2025 Counterclaim · C 2023 Set-off of unpaid wheat price v cloth price · C 2025 Counter-claim on a separate contract

Core idea

The defendant replies with a **written statement** (O.VIII). He can **reduce** the claim with a **set-off** (a shield — money he is owed by the plaintiff) or **attack back** with a **counter-claim** (a sword — any claim, as if a cross-suit).

Real life

Shopkeeper P sues trader D for ₹2 lakh for goods supplied. D says: "You owe me ₹50,000 rent" → **set-off** (₹2 lakh − ₹50,000). D says: "Your lorry damaged my godown — pay ₹3 lakh" → **counter-claim** (can exceed P's claim).

PART A · SHORT NOTE

Written statement (O.VIII)

- **r.1** filed **within 30 days** of service of summons; court may extend for reasons up to **90 days** — **directory** for ordinary suits (**Kailash v Nanhku**, 2005) but **120 days mandatory** in **commercial** suits (**SCG Contracts v K.S. Chamankar**, 2019)
- **r.1A** documents relied on filed with it
- **r.2 new facts** must be pleaded: suit not maintainable, **void/voidable**, **limitation**, **payment**, **release**, **fraud**
- **r.3–5 specific denial**: denial must be **specific**; an **evasive** or general denial = **deemed admission** (except against a person under disability)
- **r.10** no WS within time → court may **pronounce judgment** or make any order

⚖️ Kailash v Nanhku (2005)

Story — In an election petition, the returned candidate filed his written statement **after 90 days** because of genuine difficulties; the High Court refused to accept it.

Held — The **90-day** limit in O.VIII r.1 is **directory, not mandatory** — procedure is the **handmaid of justice**; a WS may be taken later in **exceptional** cases, with reasons and costs.

Why it matters — Explains the **time limit** for written statements (contrast commercial suits — **SCG Contracts**, 2019: 120 days is mandatory).

Trick — 90 days is a strong request, not a guillotine.

PART B · ESSAY

Set-off and counter-claim — meaning and distinction

Q. Define set-off and counter-claim and distinguish them. Distinguish legal and equitable set-off. (2013, 2017, 2020)

1. Set-off — O.VIII r.6

Set-off is a **reciprocal acquittal of debts**: where two persons owe each other money, the smaller debt is **deducted** from the larger. The defendant **pleads it in the written statement** to **reduce or wipe out** the plaintiff's claim.

1. suit is for **recovery of money**
2. the sum claimed by the defendant is an **ascertained sum** (fixed, not damages to be assessed)
3. **legally recoverable** — not time-barred on the date of suit
4. recoverable **by the defendant** (or all defendants) **from the plaintiff** (or all plaintiffs)
5. both parties fill the **same character** in both claims
6. within the **pecuniary jurisdiction** of the court

Effect (r.6(2)): the written statement has the **same effect as a plaint in a cross-suit** — the court can pass one decree for the balance. Court fee is payable on the set-off.

2. Legal v equitable set-off

Point	Legal set-off (r.6)	Equitable set-off
Amount	**ascertained** sum	may be **unascertained**
Transaction	may arise from **different** transactions	must arise from the **same transaction**
Right	claimed **as of right**	**court's discretion**
Time-bar	must not be time-barred	can be allowed even if a separate suit would be barred
Court fee	payable	not payable

3. Counter-claim — O.VIII r.6A–6G

Counter-claim is the defendant's **independent claim against the plaintiff**, which he could have filed as a **separate suit**, but which he makes in the **same suit**. Added in **1976** to avoid multiplicity.

- **r.6A** any **right or claim** (money or not) in respect of a cause of action **accruing before or after** the suit but **before the defence is filed** or time to file it expires; within **pecuniary jurisdiction**; **treated as a plaint**
- **r.6B specifically stated** · **r.6C** plaintiff may ask that it be tried as a **separate suit**

→ **r.6D** survives even if the **suit is stayed, discontinued or dismissed** · **r.6E** plaintiff fails to reply → **judgment** on it · **r.6F** relief to the defendant even beyond the plaintiff's claim · **r.6G** reply = written statement rules

⚖️ **Ashok Kumar Kalra v Wing Cdr. Surendra Agnihotri** (2020)

Story — A defendant tried to add a **counter-claim** long after filing his written statement, when the trial was well under way.

Held — A counter-claim must ordinarily be filed **with the written statement**; it **can't be filed after issues are framed** and evidence starts, except in rare cases — the court weighs delay and prejudice.

Why it matters — Sets the **time limit** for counter-claims.

Trick — Sword must be drawn with the shield, not after the battle starts.

4. Set-off v Counter-claim

Point	*Set-off*	*Counter-claim*
Nature	a **shield** — defence	a **sword** — attack, a cross-suit
Claim	only **money**, **ascertained**	**any** claim — money, property, injunction, damages
Transaction	legal: any; equitable: same	**any** cause of action
Amount	can **reduce/extinguish** the claim; excess decree as cross-suit	may **exceed** the plaintiff's claim
If suit fails	falls with the suit (legal set-off has cross-suit effect)	**continues** (r.6D)
Time	existing on the date of suit	accrued **before the defence**
Provision	O.VIII **r.6**	O.VIII **r.6A–6G**

✅ *Conclusion (write this)*

Set-off **reduces** what the defendant must pay; a counter-claim lets him **win his own relief** in the same suit. Both save time, avoid **multiplicity**, and let one decree settle the **whole account**.

🧠 *Memory trick*

Set-off = Shield · Counter-claim = Sword. Set-off conditions = **M-A-L-B-C-J**: Money suit · Ascertained · Legally recoverable · By/against all · same Character · Jurisdiction.

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
Seller sues for unpaid cloth price; buyer claims the seller owes him an ascertained sum for wheat supplied (2023).	**Legal set-off allowed** — both ascertained money sums, legally recoverable, same parties & character; transactions may differ (O.VIII r.6).
Plaintiff sues on a promissory note; defendant claims unliquidated damages for breach of another contract.	**No legal set-off** (not ascertained) and **no equitable set-off** (different transaction) — but he can file a **counter-claim** (r.6A).
In a debt suit, defendant files a counter-claim for breach of a separate contract (2025).	**Allowed** — counter-claim may rest on **any cause of action** accrued before the defence, within pecuniary jurisdiction (r.6A).

PART A · SHORT NOTE *Framing of issues (O.XIV)*

Issues arise when a **material proposition of fact or law** is **affirmed by one party and denied by the other** (r.1). **Issues of fact** and **issues of law**. Framed at the **first hearing** after reading pleadings and examining parties (O.X).

- → **r.2** court decides **all issues**; may first try an **issue of law** only if it relates to **jurisdiction** or a **bar created by law** (preliminary issue)
- → **r.3** materials: allegations on oath, pleadings, interrogatory answers, documents
- → **r.5** court may **amend, add or strike out** issues before decree · wrong framing is cured unless parties were **misled**

⚖️ **Afcons Infrastructure v Cherian Varkey Construction** (2010)

Story — A sub-contractor's money dispute with a main contractor on a Cochin Port project was sent by the trial court to **arbitration** under S.89, though Afcons did **not consent**.

Held — Reference to **arbitration (and conciliation)** under S.89 needs the **consent of all parties**; the court may refer to **mediation / Lok Adalat / judicial settlement** without consent. Listed cases **unsuitable** for ADR (fraud, criminal, representative suits, public interest).

Why it matters — The working rules of **S.89**.

Trick — No consent, no arbitration.

PART A · SHORT NOTE *S.89 — settlement outside court*

Where elements of settlement exist, the court **formulates terms** and refers the dispute to **arbitration, conciliation, judicial settlement (incl. Lok Adalat) or mediation** (S.89 + **O.X r.1A–1C**). Arbitration needs **consent** (**Afcons Infrastructure**, 2010); court fee is **refunded** on settlement.

Cluster 7

Non-appearance, Ex parte & Dismissal for Default

TIER 3 · short-note level | Unit III · O.IX | asked 4× in 2013–2025 papers

How it was asked (2013–2020): A 2017 Ex parte decrees · C 2013 Non-appearance of defendant before / after written statement · C 2017 Remedies when suit dismissed for default
Recent papers (2021–2025): C 2022 40-day delay in set-aside petition (with C15)

Core idea

Order IX says what happens when a party **does not appear** — and how to **come back**. Absence of the plaintiff → **dismissal**; absence of the defendant → **ex parte** hearing. Each has a remedy for **sufficient cause**.

Who appears on the hearing day?	Result
neither party (r.3)	suit **dismissed** — fresh suit allowed (r.4) or restore
summons not served because plaintiff didn't pay costs (r.2, r.5)	dismissed
only plaintiff (r.6)	if summons **duly served** → court hears **ex parte**; if not served → fresh summons
only defendant (r.8)	suit **dismissed** (if claim admitted in part, decree for that part)

PART A · SHORT NOTE

Ex parte decree & its remedies

An **ex parte decree** is passed **in the absence of the defendant** after he was duly served (O.IX r.6). Remedies — **concurrent** (**Bhanu Kumar Jain v Archana Kumar**, 2005):

1. **set aside** under **O.IX r.13** — show (1) summons **not duly served**, or (2) **sufficient cause** for absence; not set aside for a mere **irregularity** in service if he **knew the date** in time; apply within **30 days** (Art. 123)
2. **appeal** under **S.96(2)**
3. **review** under O.XLVII
4. **suit** to set aside only if the decree was obtained by **fraud**

r.7: before the decree, the defendant may appear and show **good cause** to be heard (from that stage) · **r.14**: no setting aside **without notice** to the other side.

PART C · PROBLEM 2013

Q. Discuss the consequences of non-appearance of a defendant (a) without filing a written statement and (b) after filing it.

Issue — What happens when the defendant stays away at two different stages?

Law — **O.VIII r.10** (no WS → judgment), **O.IX r.6** (ex parte), **O.XVII r.2–3** (absence at adjourned hearing), **O.IX r.13**.

Apply — (a) **No WS and absent**: court may proceed **ex parte** (r.6) and may **pronounce judgment** on the plaint (O.VIII r.10) — but must still be satisfied the plaintiff's case is **proved**. (b) **WS filed, then absent**: court proceeds **ex parte**, but **must consider the WS on record**; if absent at an **adjourned** hearing after evidence, court may decide on merits (O.XVII r.2–3). Either way he can apply under **O.IX r.13** within 30 days.

Decision — **In both cases an ex parte decree can be passed; the defendant's remedies are O.IX r.13, appeal (S.96(2)) or review.**

PART C · PROBLEM 2017

Q. When a suit is dismissed for default, what remedies does the aggrieved party have?

Issue — Remedies against dismissal for the plaintiff's non-appearance.

Law — **O.IX r.4** (both absent — **fresh suit** or restoration), **O.IX r.9** (plaintiff absent, defendant present — **no fresh suit**; **restore** on sufficient cause; 30 days — Art. 122), **O.XLIII r.1(c)** appeal against refusal to restore, **S.151**.

Apply — If dismissal was under **r.3** (neither appeared): plaintiff may file a **fresh suit** (within limitation) or apply to **restore**. If under **r.8** (plaintiff absent): fresh suit **barred** (r.9(1)); he must apply under **r.9** showing **sufficient cause** (illness, accident, wrong date) — court restores on terms/costs.

Decision — **Remedies: restoration application (O.IX r.4 / r.9) within 30 days, a fresh suit only after an r.3 dismissal, and an appeal under O.XLIII r.1(c) if restoration is refused.**

Memory trick

Neither → dismiss · P only → ex parte · D only → dismiss — come back by **r.9 (plaintiff)** or **r.13 (defendant)** with **sufficient cause**.

⚖️ **Bhanu Kumar Jain v Archana Kumar** (2005)

Story — A defendant against whom an **ex parte decree** was passed first applied under **O.IX r.13**, lost, and then tried to argue the **same ground** (no proper service) again in a **first appeal**.

Held — Remedies against an ex parte decree — **O.IX r.13** and **appeal (S.96(2))** — are **concurrent**; but once the r.13 application is dismissed, the **same ground** can't be re-agitated in appeal (constructive RJ between stages). In the appeal he can still attack the decree **on merits / evidence**.

Why it matters — Leading case on **choosing remedies** against an ex parte decree.

Trick — Two doors open — but don't knock twice with the same plea.

⚖️ **Sangram Singh v Election Tribunal, Kotah** (1955)

Story — A party absent on one hearing date was refused any participation in the rest of the trial because the case was 'ex parte'.

Held — An ex parte order is **not a penalty**; the defendant can **appear at any later hearing** and take part from that stage. Procedure is a **handmaid of justice** — the Code must be read to **help** justice.

Why it matters — Gentle reading of **O.IX**.

Trick — Absent once, not out forever.

G.P. Srivastava v R.K. Raizada (2000): 'sufficient cause' is read **liberally** — the test is whether the party **honestly intended** to appear and did his best.

Cluster 8

Stages of a Suit, Judgment, Decree & Orders

TIER 2 · important | Units II–III · S.2(2), 2(9), 2(12), 2(14), 33, O.XX | asked 7× in 2013–2025 papers

How it was asked (2013–2020): A 2016 Judgment and decree · A 2018 Judgment and decree · C 2014 Stranger claims ownership in final-decree proceedings — remedy
Recent papers (2021–2025): A 2021 Preliminary decree · A 2022 Judgment & decree · A 2023 Mesne profits; Judgment-debtor · B 2023 Stages of a suit

Core idea

Judgment = the court's **reasons**; **decree** = the **formal result** that conclusively decides the parties' rights; **order** = every other decision. The difference decides **appeals**: every decree is appealable (S.96); orders only if listed (S.104, O.XLIII).

PART A · SHORT NOTE

Judgment & decree

	Judgment — S.2(9)	Decree — S.2(2)	Order — S.2(14)
Meaning	statement of the **grounds** of a decree or order	formal expression of an **adjudication** that **conclusively determines rights** in the suit	formal expression of a decision that is **not a decree**
Arises in	suits & proceedings	**suits** only (+ deemed decrees)	suits, applications, execution
Appeal	—	**always** (S.96) unless barred	only if **appealable** (S.104, O.XLIII)
Number	one	one (+ preliminary)	many

- **Decree includes**: **rejection of a plaint**, determination of **S.144** questions · **excludes**: an **appealable order**, an order of **dismissal for default**
- **Kinds**: preliminary (rights declared, work remains — partition, accounts, mortgage), final, partly preliminary partly final (possession + mesne profits inquiry), deemed (rejection of plaint)
- **O.XX**: judgment pronounced in open court **at once or within 30 days** (max **60**) · contains **points for determination, decision, reasons** (r.4) · finding on **each issue** (r.5) · decree drawn within **15 days** (r.6A) · **r.12** mesne profits · **r.18** partition

Judgment = WHY · Decree = WHAT · Order = everything else.

PART B · ESSAY

Stages of a civil suit

Q. Explain the various stages of a civil suit. (2023)

A civil suit moves through fixed **stages** from filing to execution. The CPC sets time limits at most steps to stop delay.

1 Plaint
S.26, O.IV, O.VII

⇩

2 Scrutiny
return / rejection (O.VII r.10–11)

⇩

3 Summons
S.27, O.V — 30 days

⇩

4 Appearance
O.IX — ex parte if absent

⇩

5 Written statement
O.VIII — 30 → 90 days; set-off / counter-claim

⇩

6 First hearing
O.X examination; S.89 ADR

⇩

7 Discovery & documents
O.XI–XIII; admissions O.XII

⇩

8 Issues
O.XIV

⇩

9 Witnesses & evidence
O.XVI, XVIII — list in 15 days; affidavit chief

⇩

10 Arguments
O.XVIII r.2

⇩

11 Judgment & decree
O.XX — 30/60 days; decree in 15 days

⇩

12 Appeal / review / revision
S.96–115

⇩

13 Execution
S.36–74, O.XXI

- **interlocutory stage** runs alongside: injunctions, receivers, commissions, attachment before judgment (S.94)
- **incidental events**: amendment (O.VI r.17), adding parties (O.I r.10), death of a party (O.XXII), adjournments (O.XVII — max 3), withdrawal/compromise (O.XXIII)

✅ *Conclusion (write this)*

Each stage has a **purpose** — notice, pleadings, narrowing the dispute, proof, decision, correction and enforcement — so that a civil right ends in **actual relief**.

🧠 *Memory trick*

Plaint → Summons → Written statement → Issues → Evidence → Judgment → Decree → Appeal → Execution — say it as a 9-step ladder.

PART A · SHORT NOTE

Mesne profits & decree-holder / judgment-debtor (S.2(12), 2(3), 2(10))

Mesne profits (S.2(12)) = profits which the person in **wrongful possession** of property **actually received or might with ordinary diligence have received**, with **interest**, but **not** profits due to **improvements** he made. Claimed with a suit for possession (O.II r.4); court may order an **inquiry** and pass a decree (O.XX r.12). **Decree-holder** (S.2(3)) = person in whose favour a decree/executable order is passed; **judgment-debtor** (S.2(10)) = person against whom it is passed.

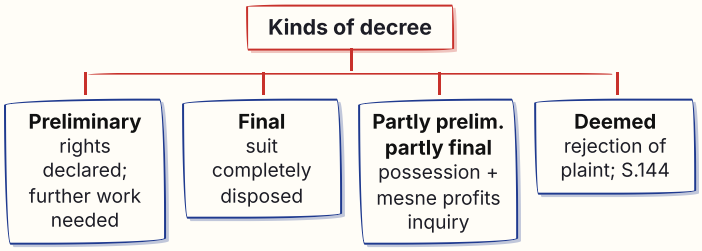
PART B · ESSAY

Decree, judgment and interim orders — concepts

Q. Explain the concepts of judgment, decree and interim orders. (Unit III — asked as short notes 2016, 2018; write this if it comes as an essay)

1. Decree — S.2(2): five essentials

1. a **formal expression** (drawn up in the prescribed form, O.XX r.6)
2. of an **adjudication** — a judicial decision after applying the mind
3. **conclusively determining the rights** of the parties
4. on **all or any of the matters in controversy**
5. **in the suit** — a proceeding begun by a plaint (or a deemed one)



- **Preliminary decree** examples (O.XX): partition (r.18), accounts between partners (r.15), mortgage suits (O.XXXIV), mesne profits inquiry (r.12) · there can be **more than one** preliminary decree
- **Final decree** follows and **must agree** with the preliminary decree; an **unappealed preliminary decree** can't be attacked later (**S.97**)
- **Not decrees**: an **appealable order** (S.104), **dismissal for default**, an order in **execution** (unless S.144), interlocutory orders

2. Judgment — S.2(9), O.XX r.4–5

A **judgment** is the **statement of the reasons** on which a decree or order is based. It contains (r.4(2)) a **concise statement of the case**, the **points for determination**, the **decision** on them and the **reasons**; a finding on **each issue** (r.5). Pronounced in **open court**, **dated and signed**; once signed it can be changed only for **clerical/arithmetical** errors (**S.152**) or by **review**.

3. Interim orders

Orders made **during the suit** to protect the subject matter and parties till the final decree — **temporary injunction** (O.XXXIX), **receiver** (O.XL), **attachment / arrest before judgment** (O.XXXVIII), **interim payment / deposit** (O.XXXIX r.10), **stay** of suit (S.10) or of execution (O.XLI r.5, O.XXI r.26), **status quo**. They are **not decrees**; many are appealable under **O.XLIII**, others can be challenged in the appeal against the decree (**S.105**).

✅ *Conclusion (write this)*

Judgment gives the reasons, the decree gives the result, interim orders guard the subject matter till then. The distinction decides **appealability** and **finality**.

🧠 *Memory trick*

Decree essentials = **F-A-C-M-S**: **F**ormal · **A**djudication · **C**onclusive · **M**atters in controversy · **S**uit.

PART C · PROBLEM *2014*

Q. A, a partner, got a preliminary decree for dissolution and accounts (50% share). In final-decree proceedings C, a stranger, sought to be impleaded claiming to own the property; the court dismissed his petition. What remedy is available?

Issue	Remedy of a third person whose impleadment is refused in final-decree proceedings.
Law	**S.2(2)** (preliminary & final decree), **O.I r.10(2)**, **S.11** (decree binds only parties), **S.115 / Art. 227** (against orders), **O.XXI r.58 & r.97–101** (claims and obstruction in execution), **S.96** (appeal with leave by a person affected).
Apply	A partnership/accounts decree binds **only the partners**; it doesn't decide C's **title**. Refusal to implead is an **order**, not appealable under O.XLIII. C can: ① file an **independent suit for declaration of title** and injunction; ② if the decree is executed against his property, file **objections / resist** under **O.XXI r.58 / r.97–101**; ③ challenge the order by **revision / Art. 227** if jurisdictional error. A or B (aggrieved by the final decree) may **appeal** under S.96.
Decision	**C is not bound by the decree; his remedy is a separate suit for title (and objections in execution under O.XXI r.97–101 / r.58), or Art. 227 against the refusal order.**

Cluster 9

Interim Orders — Injunctions, Stay, Receivers, Commissions, Arrest & Attachment before Judgment, Caveat

TIER 1 · must prepare | Units III–IV · S.94–95, 148A, O.XXXVIII–XL, O.XXVI | asked 15× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Temporary injunction · A 2014 Status quo; Interim order; Attachment before judgment; Ex parte injunction · A 2015 Temporary injunction · A 2017 Arrest & attachment before judgment; Caveat; Temporary injunctions & interlocutory matters · A 2020 Interim orders and stay · B 2016 When receiver & commission appointed · C 2014 Agreement of sale — seller demands higher price · C 2014 Encroachment while constructing — immediate step
Recent papers (2021–2025): B 2025 Arrest & attachment before judgment · C 2025 Arrest in suit for immovable property

Core idea

A suit takes time. **Interim (interlocutory) orders** keep the **subject matter safe** till the decree: **stop** harm (injunction), **freeze** the position (status quo, stay), **manage** property (receiver), **find facts** (commission), **secure** the defendant or his property (arrest/attachment before judgment).

PART B · ESSAY

Temporary injunction — when granted; principles

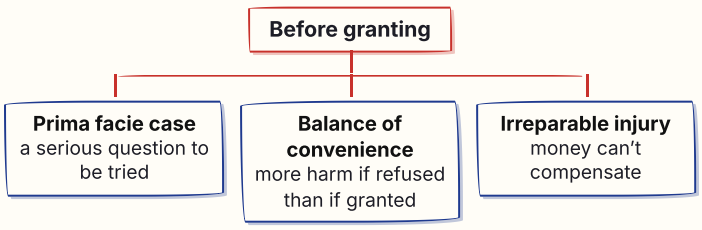
Q. Explain temporary injunctions and the principles for granting them. (2013, 2015, 2017)

An **injunction** is a judicial order **restraining** a person from doing an act (**prohibitory**) or directing him to do one (**mandatory**). **Temporary injunction** lasts till further orders/disposal and is governed by **S.94(c) + O.XXXIX**; **perpetual** injunction by the decree (**Specific Relief Act S.37–42**).

When (O.XXXIX r.1 & 2)

- **r.1(a)** property in dispute is in danger of being **wasted, damaged or alienated** or **wrongfully sold in execution**
- **r.1(b)** defendant threatens to **remove or dispose** of property to **defraud creditors**
- **r.1(c)** defendant threatens to **dispossess** the plaintiff or otherwise **injure** him in relation to the property
- **r.2** to restrain **breach of contract** or other injury

Three golden tests



- plus: **clean hands**, no **delay**/acquiescence, no adequate alternative remedy
- **r.3 ex parte** injunction only if delay would defeat the purpose — court records **reasons**; plaintiff sends copies to the defendant at once; **r.3A** decide the application within **30 days**
- **r.2A disobedience**: **attachment** of property (sold after **1 year**) and **civil prison up to 3 months** · **r.4** vary/discharge · **appeal**: O.XLIII r.1(r)

⚖️ Dalpat Kumar v Prahlad Singh (1992)

Story — A dispute over property where one side sought a temporary injunction pending the suit.

Held — Explained the three tests: **prima facie case** (a bona fide dispute, not proof), **irreparable injury** (not adequately compensable), **balance of convenience** (comparative hardship) — all three must be weighed; injunction is **discretionary**.

Why it matters — Standard quote for injunction answers.

Trick — P-B-I — all three.

⚖️ Gujarat Bottling Co. v Coca Cola Co. (1995)

Story — Gujarat Bottling bottled Thums Up and Limca under a franchise from Coca-Cola, with a **negative covenant** not to bottle rival drinks. It then tied up with **Pepsi**; Coca-Cola sought a temporary injunction.

Held — A negative covenant operating **during** the agreement is valid. But an interim injunction is **equitable and discretionary** — the court weighs the **conduct** of the party seeking it, and Coca-Cola's own conduct **disentitled** it, so the injunction was **vacated**.

Why it matters — **Conduct and clean hands** are part of the balance.

Trick — Come to equity with clean hands.

Morgan Stanley Mutual Fund v Kartick Das (1994): ex parte injunctions only in **exceptional** cases — urgency, irreparable harm, no delay, and for a **limited period**.

⚖️ **Morgan Stanley Mutual Fund v Kartick Das** (1994)

Story — An investor rushed to a civil court and got an **ex parte injunction** stopping a mutual fund from **allotting units** in a public issue — affecting thousands of investors.

Held — Supreme Court set it aside and laid down **guidelines**: ex parte injunction only where ① **irreparable** harm, ② refusing would cause **greater injustice**, ③ the plaintiff came **promptly**, ④ he acted in **good faith**, and ⑤ only for a **limited period**, with **reasons** recorded (O.XXXIX r.3).

Why it matters — The rulebook for **ex parte injunctions**.

Trick — Ex parte = exception, short and reasoned.

✅ *Conclusion (write this)*

A temporary injunction is a **shield for the subject matter** while the suit is pending — granted only on **prima facie case, balance of convenience and irreparable injury**, with strict rules for **ex parte** orders and teeth for **disobedience**.

🧠 *Memory trick*

P-B-I = Prima facie · Balance · Irreparable. Ex parte → **reasons + 30 days**. Disobey → **3 months jail + attachment**.

PART B · ESSAY

Appointment of receivers and commissions

Q. When will a court appoint a receiver and a commission? (2016)

A. Receiver — O.XL

A **receiver** is an **impartial person appointed by the court** to **take possession, manage and preserve** property in dispute, collect rents and profits, and account for them, when it appears **just and convenient** (r.1).

- used where the property is in **danger** of waste, the party in possession has **no clear title**, or mismanagement is shown (partnership, mortgage, partition suits)
- powers: bring/defend suits, realise, manage, protect, collect rents, execute documents — as the court allows
- duties (r.3–4): give **security**, submit **accounts**, pay amounts due; liable for **loss** by wilful default or gross negligence — property can be attached
- the receiver is an **officer of the court**; property is in **custodia legis**

B. Commissions — S.75–78, O.XXVI

Commission for	*Rule*
examining witnesses (sick, exempt, abroad, beyond limits)	r.1–8 (S.133 dignitaries; r.4A any person in interest of justice)
local investigation — boundaries, market value, mesne profits	r.9
scientific investigation	r.10A
ministerial acts	r.10B
sale of movables	r.10C
examining or adjusting accounts	r.11
making a partition	r.13

The commissioner's **report** and evidence form **part of the record** (r.10); a party may examine the commissioner; court may order a fresh commission.

✅ *Conclusion (write this)*

A **receiver** guards and manages property; a **commissioner** gathers facts the court can't easily collect itself. Both are **aids to justice**, appointed only when **just and convenient**.

PART A · SHORT NOTE

Status quo, interim orders & stay

- **Interim order** = any order made **during** a suit to protect rights till the decree — injunction, receiver, attachment, stay, **interim maintenance**, deposit of money (O.XXXIX r.10)
- **Status quo** = keep things **as they are** on a given date — neither side changes possession or construction; breach = disobedience (r.2A)
- **Stay** — of **suit** (S.10), of **execution** pending appeal (**O.XLI r.5**, security required) or pending a suit (**O.XXI r.26, 29**), of **proceedings** by a higher court

PART A · SHORT NOTE

Arrest & attachment before judgment (S.94, O.XXXVIII)

- **Arrest (r.1–4)**: in suits **other than for immovable property** (S.16(a)–(d)), if the defendant, to delay or obstruct, is about to **abscond**, leave the court's limits, dispose of property, or **leave India** → court may call him to give **security** for appearance; if not, **civil prison** till suit ends
- **Attachment (r.5–12)**: defendant is about to **dispose of or remove** property **with intent to obstruct execution** → court orders **security**, else **attaches**; prior rights unaffected (r.10); released on security
- a **drastic** power — clear proof of **intent** (**Raman Tech v Solanki Traders**, 2008) · **S.95** compensation for wrongful arrest/attachment/injunction — up to **₹50,000**

⚖️ **Raman Tech & Process Engineering v Solanki Traders** (2008)

Story — A supplier sued for money and asked the court to **attach the defendant's property before judgment** just to secure his claim; the lower courts allowed it.

Held — Supreme Court: attachment before judgment is a **drastic and extraordinary** power; the plaintiff must show a **prima facie case and** clear proof that the defendant is **about to dispose of / remove property with intent to obstruct** execution. It is **not** a tool to turn an unsecured claim into a secured one.

Why it matters — Limits of **O.XXXVIII r.5**.

Trick — Fear of non-payment ≠ intent to defeat.

PART A · SHORT NOTE *Caveat (S.148A)*

A person who **expects an application** in a suit (e.g. for an ex parte injunction) may lodge a **caveat** asking to be **heard first**. The caveator serves notice on the expected applicant; the applicant must then **serve the caveator**; the court gives the caveator a hearing. Valid for **90 days**. It prevents **surprise ex parte orders**.

PART C · PROBLEM *2014*

Q. A agreed to sell property to B and took a large advance. The price rose; A refuses to register the sale deed unless B pays today's market rate. B's remedy under the CPC?

Issue — B's remedies when the seller backs out to get a higher price.

Law — **Specific Relief Act S.10** (specific performance — enforceable after 2018), **S.9, 16(d)/20 CPC** (suit & place), **O.XXXIX r.1** (temporary injunction against alienation), **TP Act S.52** (lis pendens), **O.XXXVIII r.5** (attachment if he tries to sell to defeat decree).

Apply — B paid an advance under a concluded agreement; a **price rise is no excuse**. B should file a **suit for specific performance** (and alternatively refund with interest) where the property lies, and ask for a **temporary injunction** restraining A from **selling to anyone else**; any sale during the suit is subject to **lis pendens**.

Decision — **B should sue for specific performance and immediately seek a temporary injunction under O.XXXIX r.1 restraining alienation; the court will enforce the agreed price.**

PART C · PROBLEM *2014*

Q. A, a later purchaser, encroached 150 sq. yards of B's adjacent plot while building and refuses to stop. B's remedy and immediate step?

Issue — Remedy against ongoing encroachment by construction.

Law — **S.9, S.16(a)/(d)** (suit where land lies), **Specific Relief Act S.5, 38, 39** (possession, perpetual & mandatory injunction), **O.XXXIX r.1(c) & r.3** (temporary / ex parte injunction), **O.XXVI r.9** (local commission to measure).

Apply — B is the **first purchaser** with a valid title; construction on his land is a **continuing injury** that money can't easily undo (**irreparable**). He has a **prima facie** case (sale deeds, survey sketch) and **balance of convenience** favours stopping construction now.

Decision — **Immediate step: file a suit for recovery of possession, mandatory injunction (demolish) and perpetual injunction, with an application for ex parte temporary injunction / status quo (O.XXXIX r.1, r.3) and a local commission (O.XXVI r.9) to measure the encroachment.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
Defendant builds despite a status quo order.	**Disobedience** — attachment + civil prison up to **3 months** (O.XXXIX r.2A).
Court grants an ex parte injunction without reasons.	Bad — **r.3** needs reasons; defendant may apply to vacate (r.4) or **appeal** (O.XLIII r.1(r)).
Ex parte injunction pending for 4 months.	Must be decided within **30 days** (r.3A); party may approach the appellate court.
Plaintiff fears the defendant will sell his only house and leave India before decree in a money suit.	**Attachment before judgment** (O.XXXVIII r.5) and/or **security** for appearance (r.1) — needs proof of intent.
Defendant expects an ex parte injunction application.	File a **caveat** (S.148A) — must be heard first; valid 90 days.
Partnership dispute; one partner is siphoning profits.	Appoint a **receiver** (O.XL) — just and convenient.

Cluster 10

Execution — Modes, Arrest & Detention, Attachment & Sale

TIER 1 · must prepare | Unit III · S.36–74, O.XXI | asked 16× in 2013–2025 papers

How it was asked (2013–2020): A 2016 Arrest and detention · A 2018 Modes of execution; Attachment and sale · A 2019 Properties which can be attached · A 2020 Modes of execution · B 2013 Modes of execution · B 2018 Procedure before arrest & detention of JD · B 2019 Modes of execution · C 2018 Arrest of defendant in suit for immovable property · C 2018 Attaching agricultural produce & implements · C 2020 Attachment + arrest together

Recent papers (2021–2025): A 2023 Execution · A 2025 Modes of execution · B 2022 Property exempt from attachment · C 2022 Court executing a document for the JD

Core idea

Execution = **enforcing a decree** through the court, so that the **decree-holder (DH)** actually gets what he won from the **judgment-debtor (JD)**. A decree is only paper until it is executed — "the difficulties of a litigant begin after he gets the decree" (Privy Council).

Real life

Sunita wins a decree for ₹4 lakh against a trader in Nizamabad. He doesn't pay. She files an **execution petition**: the court can **attach and sell** his property, or — if he has the money but won't pay — **detain him in civil prison**.

PART B · ESSAY

Modes of execution of a decree

Q. What are the various modes of execution of a decree under the CPC? (2013, 2018, 2019, 2020)

1. Meaning & who executes (S.36–47)

Execution is the **process of enforcing** a decree or order (S.36). It is done by the **court which passed the decree** or the court to which it is **sent for execution** (**S.38**); transfer is possible (**S.39**, e.g. JD's property elsewhere). **S.47**: **all questions** between the parties relating to **execution, discharge or satisfaction** are decided by the **executing court**, not by a separate suit. The executing court **cannot go behind the decree** (**Topanmal v Kundomal**, 1960), but may refuse to execute a **nullity** (**Sunder Dass v Ram Prakash**, 1977).

2. Procedure (O.XXI)

application
r.10–11: oral (money, arrest) or **written** EP with details

⇩

check & register
r.17

⇩

notice to JD
r.22: if > 2 years or against LR

⇩

process
warrant of attachment / arrest

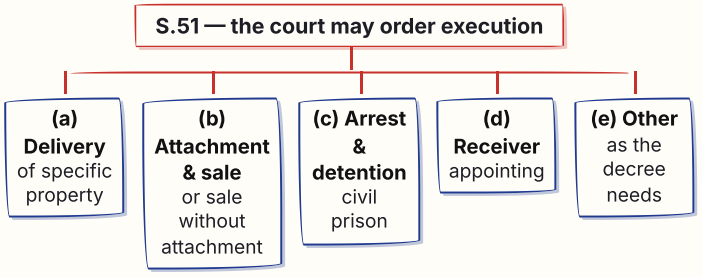
⇩

objections
S.47 · r.58 claims · r.97 resistance

⇩

satisfaction
r.2: payment out of court certified

3. Modes — S.51



Decree for	How executed (O.XXI)
money	attachment & sale, **and/or** detention (r.30)
specific movable	seizure & delivery; or detention/attachment (r.31)
specific performance / injunction	detention, attachment of property (r.32)
immovable property	**delivery of possession** (r.35); symbolic if tenant in occupation (r.36)
restitution of conjugal rights	attachment only — **no arrest** (r.32(1))
execution of a document	court executes it (r.34)
partition	Collector divides (S.54)

4. Arrest & detention — S.55–59, O.XXI r.37–40

→ **S.51 proviso**: for a **money decree**, detention only after the JD is given a chance to **show cause**, and the court

records reasons that he ① is likely to **abscond** or leave the limits, ② has **dishonestly transferred** property, or ③ **has means to pay and refuses / neglects**

- **r.37** show-cause notice → **r.40** inquiry → order
- **S.55** arrest any day, any hour — **no entry into a dwelling between sunset and sunrise**; outer door not broken except to enter a JD's own house where he is
- **S.56 no arrest or detention of a woman** in execution of a **money decree**
- **S.57** subsistence allowance paid by DH · **S.58** period: decree **> ₹5,000 → up to 3 months**; **₹2,000–5,000 → up to 6 weeks**; **≤ ₹2,000 → no detention**
- **S.59** release on illness · release does **not discharge** the debt · exempt persons: judges, MPs/MLAs during sessions (S.135, 135A)

⚖️ **Jolly George Varghese v Bank of Cochin** (1980)

Story Debtors whose decree-debt was unpaid were ordered to be **arrested and detained** without any inquiry into whether they had the means to pay.

Held Krishna Iyer J: reading **S.51** with **Art. 21** and **Art. 11 of the ICCPR** (no imprisonment merely for inability to fulfil a contract) — **mere failure to pay is not enough**; there must be wilful refusal despite means (some **bad faith**). Detention order set aside.

Why it matters Humanised execution — **poverty is not a crime**.

Trick Can't pay ≠ won't pay.

PART B · ESSAY *Procedure before arrest & detention of a judgment-debtor (2018)*

EP for arrest
O.XXI r.11(2)(j)

⇩

show-cause notice
r.37 — instead of warrant (except absconding risk)

⇩

JD appears
r.40 inquiry: means, conduct

⇩

reasons recorded
S.51 proviso grounds

⇩

warrant
r.38 · allowance deposited (S.57)

⇩

detention
S.58 limits · may be released (S.58(2), 59)

- at the hearing the **DH proves** the JD's means and refusal; the JD may show **inability** or offer **instalments**
- court may release him on **security** to appear; order **subsistence allowance** first (r.39)
- **women** (money decree) and exempt persons (**S.135, 135A**) can't be detained

5. Attachment & sale — S.60–74, O.XXI r.41–106

S.60: **all saleable property** of the JD (land, houses, goods, money, cheques, shares, debts) can be attached — **except** the exempt list:

Exempt from attachment — S.60(1) (main items)	
necessary wearing apparel, cooking vessels, beds, bedding, ornaments a woman can't part with by religious usage	**tools of artisans**; for an **agriculturist**: **implements of husbandry, cattle, seed-grain** needed to earn a living
houses & buildings of an agriculturist / labourer / domestic servant occupied by him	**books of account**
a mere right to sue for damages	right of personal service; future maintenance; **pensions** (govt / railway)
salary: first ₹1,000 + two-thirds of the remainder exempt (attachment max 24 months)	PF & specified funds; stipends; wages of labourers & domestic servants

- **S.61**: State Govt may exempt **agricultural produce** needed for the agriculturist's **maintenance** till the next harvest and seed
- **how**: movables — **actual seizure** (r.43); debts/shares — **prohibitory order** (r.46); **garnishee** proceedings (r.46A–46I); immovables — **prohibitory order** + proclamation (r.54)
- **S.64** private transfer after attachment is **void against** the attachment claims · **r.58** third-party claims decided in execution
- **sale** by **public auction** after proclamation (r.64–73) · immovable sale set aside for **material irregularity + substantial injury** (r.90) or on **deposit of 5% + decretal amount** (r.89) · **certificate of sale** (r.94)

⚖️ **Rahul S. Shah v Jinendra Kumar Gandhi** (2021)

Story Decree-holders were waiting **decades** to enjoy property decrees because of endless objections in execution.

Held Supreme Court gave **14 directions**: executing courts must **dispose of execution within 6 months**, decide third-party claims quickly (O.XXI r.97), and courts should note **property details at the trial stage**.

Why it matters Most recent law on **speedy execution**.

Trick Decree in 6 months, not 60 years.

✅ *Conclusion (write this)*

S.51 gives the executing court a **toolkit** — delivery, attachment & sale, arrest, receiver, other — chosen by the **nature of the decree**. Arrest for money is the **last resort**, only for a JD who **can but won't** pay (Jolly George); attachment spares the **necessities of life** (S.60).

🧠 *Memory trick*

S.51 = **D-A-A-R-O**: **D**elivery · **A**ttach & sell · **A**rrest · **R**eceiver · **O**ther. Detention = **3 months / 6 weeks / nil** (5,000 / 2,000).

PART C · PROBLEM *2018*

Q. X wants arrest of the defendant in a suit for recovery of immovable property. Can he do so?

Issue	Is arrest before judgment available in a suit for immovable property?
Law	**O.XXXVIII r.1** — arrest before judgment only in suits **other than** those under **S.16(a)–(d)** (recovery of immovable property, partition, foreclosure/sale/redemption of mortgage, determination of rights in land). **S.94(a)**.
Apply	The suit is for **recovery of immovable property** — a **S.16(a)** suit. Land can't run away; the plaintiff's interest is protected by **temporary injunction** (O.XXXIX) and **lis pendens** (TP Act S.52).
Decision	**No — arrest before judgment is barred in such a suit; X can seek an injunction against alienation/waste instead. (After a decree, arrest in execution is possible only for decrees enforceable that way, with the S.51 safeguards.)**

PART C · PROBLEM *2018*

Q. A wants to attach the agricultural produce and implements of the JD X in execution of a money decree. Is it maintainable?

Issue	Can an agriculturist's implements and produce be attached?
Law	**S.60(1)(b)**: **implements of husbandry, cattle and seed-grain** of an agriculturist (as necessary to earn his livelihood) are **exempt**; **S.61**: State may exempt the part of **agricultural produce** needed for his **maintenance** till next harvest; **O.XXI r.44–45** (attachment of growing crops / produce).
Apply	If X is an **agriculturist**, his **implements** cannot be attached at all. His **produce** can be attached only **beyond** the portion exempted by the State notification under S.61.
Decision	**Not maintainable as to the implements (exempt); partly maintainable as to the produce — only the surplus beyond the S.61 exemption can be attached and sold.**

PART C · PROBLEM *2020*

Q. A filed an execution petition seeking attachment and sale of B's property and also B's arrest. Can he do so?

Issue	Can a DH seek both attachment and arrest together for a money decree?
Law	**S.51** (modes) and **O.XXI r.30**: a money decree may be executed by **detention, attachment and sale, or both**; **r.11(2)(j)** EP must state the mode; **S.51 proviso**, **r.37–40**, **S.56, 58** safeguards.
Apply	The law allows **both modes simultaneously**. But arrest is ordered only after a **show-cause notice** and a finding that B has **means and refuses**, or is absconding/transferring property (Jolly George). Attachment & sale can proceed meanwhile.
Decision	**Yes, A may pray for both (O.XXI r.30) — the court will order attachment & sale, and arrest only after inquiry under the S.51 proviso and subject to S.56–58.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
DH seeks arrest of a woman JD for a money decree.	**Not allowed** — S.56.
Decree for ₹1,800; DH seeks civil prison.	**No detention** — S.58(1A) (≤ ₹2,000).
DH attaches the JD's salary.	Only beyond **₹1,000 + ⅔ of the rest** is attachable (S.60(1)(i)).
JD sells his land after attachment.	**Void against** the DH's claims (S.64).
JD says the decree is wrong on merits.	Executing court **can't go behind** the decree (*Topanmal*) — only a **nullity** can be resisted.
Third person objects that the attached house is his.	**Claim petition** under **O.XXI r.58** — decided in execution itself.
JD refuses to sign a sale deed the decree orders him to execute (2022).	Court **executes the document itself** (O.XXI r.34) — draft served, objections heard, signed by the judge; it has the same effect as if the JD signed.

Cluster 11

Suits by or against the Government & Suits relating to Public Matters

TIER 2 · important | Unit IV · S.79–82, 91–92, O.XXVII | asked 10× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Suit by or against government · A 2018 Suits by or against government · A 2020 Suits by or against government · A 2017 Suits relating to public matters · A 2019 Public nuisance & public charities · C 2015 Municipal demolition on 2 days' notice · C 2017 Suit against GHMC for refusing building permission · C 2019 Same (GHMC)
Recent papers (2021–2025): A 2025 Suits relating to public matters · C 2022 LR sues without fresh S.80 notice

Core idea

The State is sued like anyone else — but with **special rules**: sue in the name of **Union of India / State**, give **2 months' notice (S.80)** first, and the decree is executed only after **3 months (S.82)**. Wrongs to the **public** (nuisance, trusts) are sued by the **Advocate-General** or **two persons with leave**.

PART A · SHORT NOTE

Suits by or against the Government (S.79–82, O.XXVII)

- **S.79** sue/be sued as **Union of India** or the **State** (not a department/officer)
- **S.80(1)** no suit against the **Government** or a **public officer** (for an official act) until **2 months after written notice** — stating **name, description, residence, cause of action, relief**
- **S.80(2) urgent relief** — suit **with leave** without notice; no relief (interim or final) till the Govt is **heard**; plaint returned if no urgency
- **S.80(3)** not dismissed for **technical error** in the notice if name, address, cause & relief are clear
- **S.81** no arrest / personal appearance of a public officer · **S.82** decree **executed only if unsatisfied for 3 months** · **O.XXVII**: authorised signing, **Govt pleader**, written statement time up to **2 months** (r.5), court to try **settlement** (r.5B)

***Bihari Chowdhary v State of Bihar** (1984): S.80 notice is **mandatory** — it gives the State a chance to **settle** without litigation. **Ghanshyam Dass v Dominion of India** (1984): read the notice to **advance justice**; a notice given by a person who dies enures for his **legal representatives**. **State of A.P. v Pioneer Builders** (2006): leave under 80(2) needs real **urgency**; Govt must be heard before relief.*

PART B · ESSAY

Suits by or against the Government — S.79–82 and the S.80 notice

Q. Discuss suits by or against the Government. (asked as short notes 2013, 2018, 2020; problems 2015, 2017, 2019)

Object of S.80

The Government is a huge organisation; a notice gives it **time to examine the claim**, **reconsider** its decision and **settle** without expensive litigation. S.80 is **mandatory** — it is '**express, explicit and imperative**'; a suit without notice is **not maintainable** unless 80(2) applies. But the notice is read with **common sense**, not hyper-technically.

Notice must state	Delivered to
name, description, residence of the plaintiff	Union: **Secretary** to the Govt of India (railway: **General Manager**)
cause of action	State: **Secretary** to that Govt or **Collector** of the district
relief claimed	public officer: **to him personally** (or his office)

- **80(2) urgent or immediate relief** → suit **with leave** without notice; court must hear the Govt before any relief and **return** the plaint if no urgency
- **80(3)** no dismissal for error/defect if name, address, cause & relief are **substantially** indicated
- notice can be **waived** by the Govt (it is for its benefit)

⚖️ **Bihari Chowdhary v State of Bihar** (1984)

Story	Plaintiffs sued the State of Bihar without giving the **two-month S.80 notice**.
Held	S.80 is **mandatory**; its object is to give the Government a chance to **reconsider and settle** the claim; a suit without notice (outside 80(2)) is **not maintainable**.
Why it matters	Mandatory nature of **S.80**.
Trick	No notice, no suit.

⚖️ **State of A.P. v Pioneer Builders** (2006)

Story	A builder sued the State **without notice**, got **leave under S.80(2)** and an interim order the same day — without hearing the Government.
Held	Leave under 80(2) is given only if there is real **urgency**; even then **no interim relief** can be granted **without giving the Government a reasonable opportunity** of being heard; else the plaint is returned for presentation after notice.
Why it matters	Limits of the **urgency exception**.
Trick	Urgent? Still hear the State first.

📖 *Bare Act — CPC S.80(1)*

No suit shall be instituted against the Government ... or against a public officer in respect of any act purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered ...

PART A · SHORT NOTE

Suits relating to public matters (S.91, S.92)

	S.91 — Public nuisance	S.92 — Public charities / trusts
Subject	**public nuisance** or other wrongful act **affecting the public**	breach of an **express or constructive trust** for **public charitable or religious** purposes; direction for administration
Who sues	**Advocate-General**, or **two or more persons with leave** of court (even without special damage)	**Advocate-General**, or **two or more persons having an interest** in the trust, **with leave**
Reliefs	declaration, injunction, other appropriate relief	remove/appoint trustees, vest property, accounts, settle a **scheme**, authorise sale/lease...
Court	civil court	**principal civil court of original jurisdiction** (District Court) or other notified court

Private suits for **special damage** are saved (S.91(2)). **R. Venugopala Naidu v Venkatarayulu Naidu Charities** (1989): a S.92 suit is a **representative suit** to protect the **public** trust, not to vindicate private rights.

PART C · PROBLEM 2015

Q. A municipal corporation proposes to demolish allegedly illegal houses on 2 days' notice. Can the owners approach the civil court? Is statutory notice to the corporation needed?

Issue — Can owners sue to stop a threatened demolition, and must they give a pre-suit notice?

Law — **S.9** (civil court open unless barred; acts **without jurisdiction / against natural justice** can be challenged — **Dhulabhai**); **S.80 CPC** applies to **Government & public officers**, not to a municipal corporation; municipal Acts have their **own notice clause** — **GHMC Act, 1955 S.685**: **one month's written notice** + suit within **6 months** for acts **done** under the Act; **O.XXXIX** injunction.

Apply — Two days' notice is **no real opportunity** — a breach of natural justice. A suit to **restrain a threatened future demolition** is not a suit 'in respect of an act **done**', so the **one-month notice does not apply** (**Municipal Corporation of Hyderabad v T.V. Sarma**, A.P. HC 1970); nor does it apply to **mala fide** acts. The owners can seek an **ex parte / temporary injunction**.

Decision — **Yes, they can sue for a declaration and injunction and get interim protection; no S.80 notice (not 'Government'), and the municipal notice clause doesn't apply to an injunction against a threatened act (a writ under Art. 226 is an alternative).**

PART C · PROBLEM 2017 / 2019

Q. X wants to sue GHMC for not granting permission to construct his house. What conditions must he fulfil before suing?

Issue — Pre-conditions for a suit against a municipal corporation for refusal of building permission.

Law — **GHMC Act, 1955 — S.685**: **written notice** stating the cause of action, **one month** before suing; suit within **6 months** of the act; exhaust any **appeal / revision** provided under the Act and building rules; **S.9 CPC** + Dhulabhai (civil court's power where the Act is not followed); **S.80** only if the **State Govt** / its officer is also sued (2 months).

Apply — Refusal of permission is an **act done** under the Act → the **notice requirement applies**. X should: ① use any **statutory appeal**; ② give **one month's written notice** to the Commissioner, GHMC; ③ file within **6 months**; ④ if the State is a party, give **S.80** notice. A **mala fide** refusal is outside S.685.

Decision — **X must give statutory notice (GHMC Act S.685, one month), sue within 6 months, after exhausting statutory remedies — and give a S.80 notice (2 months) if the State Govt is also sued.**

PART C · PROBLEM 2022

Q. A gave a S.80 notice to the Government and died before suing. His legal representative files the suit without

a fresh notice. Is it maintainable?

Issue	Must legal representatives give a fresh S.80 notice?
Law	**S.80** (object: chance to settle; read to **advance justice**); **Ghanshyam Dass v Dominion of India** (1984).
Apply	The Government already had **2 months' notice** of the **same cause of action and relief**; the LR merely steps into the deceased's shoes. A second notice would serve no purpose.
Decision	**Maintainable — no fresh notice is needed; the notice by the deceased enures for his legal representatives (*Ghanshyam Dass*, SC 1984).**

🧠 *Memory trick*

Govt suits = **2-2-3**: **2** months' notice (S.80) · **2** months for WS (O.XXVII r.5) · **3** months before execution (S.82). Public matters = **AG or 2 with leave** (S.91, 92).

Cluster 12

Suits by Minors, Indigent Persons & Interpleader Suits

TIER 2 · important | Unit IV · O.XXXII, O.XXXIII, O.XLIV, S.88, O.XXXV | asked 11× in 2013–2025 papers

How it was asked (2013–2020): A 2015 Indigent suits · A 2013 Interpleader suit · A 2016 Interpleader suits · A 2019 Interpleader suits · B 2020 Procedure in suits by indigent persons · B 2018 Interpleader suits · C 2017 Indigent person's suit on a promissory note — procedure

Recent papers (2021–2025): A 2021 Interpleader suit · A 2022 Interpleader suits · B 2023 Suit against a minor · B 2025 Indigent person — procedure

> 💡 *Core idea*
>
> **Indigent suit**: a poor person can sue **without paying court fee first** — justice shouldn't depend on money (Art. 39A). **Interpleader**: a **stakeholder** with no interest, facing **two rival claimants**, deposits the thing in court and lets them **fight it out**.

PART B · ESSAY

Suits by indigent persons — procedure

Q. What is the procedure to be followed in suits by indigent persons? (2020; problem 2017)

Order XXXIII (called 'pauper' suits before 1976) lets a person **unable to pay court fee** sue as an **indigent person**. It gives effect to **equal justice** and **free legal aid** (**Art. 14, 39A**).

> 📖 *Bare Act — O.XXXIII r.1, Expl. I*
>
> A person is an indigent person — (a) if he is not possessed of sufficient means (other than property exempt from attachment and the subject-matter of the suit) to pay the **court fee**; or (b) where no fee is prescribed, if he is not entitled to property worth ₹1,000.

application
r.2–3: contents of a plaint + **schedule of property**; presented **in person**

⇩

examination
r.4: court examines applicant

⇩

rejection?
r.5

⇩

notice & inquiry
r.6: opponent & Govt pleader heard, evidence on means

⇩

permitted
r.7–8: **registered as a plaint**; suit proceeds

*r.5 — application **rejected** if*	
not framed/presented properly	applicant **is not indigent**
he disposed of property fraudulently within 2 months to qualify	**no cause of action**
he has an agreement to share the result with another	claim **barred by law** / **transferred** subject matter

- **r.9 dispaupered**: vexatious conduct, has means, or agreement about the suit's result
- **r.10** plaintiff **wins** → court fee is a **first charge** on the decree; **r.11** loses / dispaupered / suit withdrawn → court orders him to **pay** the fee; **r.12** State may recover
- **r.15** rejection bars a second indigent application on the same right — but he may sue **paying** court fee (time spent excluded — **Limitation S.13**)
- **r.17** an **indigent defendant** may plead a set-off/counter-claim · **r.18** State **free legal services** · **O.XLIV** — indigent **appellants**

> ⚖️ **Union Bank of India v Khader International Construction** (2001)
>
Story	A **company** that had become financially unable to pay court fee sought to sue as an indigent person against the bank.
Held	'**Person**' in O.XXXIII includes a **company/juristic person** — the test is **means to pay**, not the type of person.
Why it matters	Widens the benefit to **artificial persons**.
Trick	Poverty test, not person test.

> ✅ *Conclusion (write this)*
>
> O.XXXIII opens the court to those who **can't afford it**, with **filters** against abuse (inquiry, dispaupering) and **recovery** of court fee from the result — **access to justice** without loss to the State.

PART C · PROBLEM — *2017*

Q. X, an indigent person, wants to sue Y for ₹1 lakh on a promissory note. What procedure should he follow?

Issue	How does an indigent plaintiff file a money suit?
Law	**O.XXXIII r.1–18**; **O.VII r.1** contents; **Limitation Art. 35** (3 years); **S.13 Limitation** (time spent on indigency application excluded).
Apply	X presents an **application in person** with plaint particulars + **schedule of his property**. Court examines him (r.4), may reject under r.5, else gives **notice** to Y and the **Govt pleader**, holds an **inquiry** into his means (r.6). If satisfied, it **permits** him (r.7) and the application is **numbered as a plaint** (r.8). If he wins, the court fee is recovered from the **decree**; if he loses, he is ordered to pay it.
Decision	**Follow O.XXXIII: application with property schedule → examination → inquiry with notice to Y and Govt pleader → permission → suit proceeds as an ordinary suit; court fee recovered later (r.10–11).**

PART B · ESSAY

Suits by or against minors and persons of unsound mind

Q. How is a suit by or against a minor instituted? (2023, Dec 2015)

A **minor** (under 18) and a person of **unsound mind** cannot protect their own interests in court. **Order XXXII** makes sure an **adult with no adverse interest** acts for them, and that nothing binding is done for them **without the court's eye**.

Rule	*In simple words*
r.1	a minor **sues** through a **next friend** — any adult of sound mind with **no adverse interest**; a plaint filed without one can be **taken off the file** (r.2)
r.3	for a **minor defendant**, the court appoints a **guardian ad litem** (guardian for the suit) — on application, after notice
r.4	who may act: adult, sound mind, no adverse interest, **consents**; if none, a **court officer**
r.6–7	no money received and **no compromise** for the minor without **leave of court** — else voidable against the minor
r.9–11	removal (adverse interest, neglect), retirement, death of next friend/guardian → replacement
r.12	on **attaining majority**, the minor **elects** to continue or **abandon** the suit
r.15	same rules for persons of **unsound mind** / mental infirmity
r.3A	decree not set aside merely because the guardian had an interest, unless **prejudice** to the minor

Next friend
acts for a minor **plaintiff** · chosen by the minor's side · r.1

v/s

Guardian ad litem
acts for a minor **defendant** · **appointed by the court** · r.3

- a decree against a minor **without a duly appointed guardian** is a **nullity** as against him
- limitation: a minor gets the benefit of **S.6 Limitation Act** (sue within the same period after majority)

✅ *Conclusion (write this)*

O.XXXII puts a **responsible adult** between the minor and the litigation and makes the **court the protector** — no compromise or receipt of money without leave, and the minor can choose his course on reaching majority.

🧠 *Memory trick*

Plaintiff minor → next Friend · Defendant minor → Guardian ad litem (court appoints) · compromise needs **Leave** (r.7).

PART B · ESSAY

Interpleader suits

Q. What is meant by interpleader suits? Discuss. (2018)

S.88: where **two or more persons claim adversely** to each other the **same debt, sum of money or property** (movable or immovable) from **another person**, who claims **no interest** other than charges/costs and is **ready to pay or deliver** it to the rightful claimant, he may file an **interpleader suit** to have the court decide **to whom** it should be paid — **unless a suit is already pending** in which the rights can be decided.

1. **two or more claimants** with **adverse** claims to the **same** thing
2. the plaintiff claims **no interest** except charges or costs
3. he is **ready** to pay/deliver
4. **no collusion** with any defendant
5. no other suit pending to decide the same rights

- **O.XXXV r.1** plaint states no interest, the claims, **no collusion** · **r.2** thing **deposited in court** if possible
- **r.3** if one claimant sues the plaintiff meanwhile, that suit is **stayed** · **r.4** first hearing: court may **discharge the plaintiff** with **costs** and make the claimants fight as **plaintiff & defendant**
- **r.5** agent v principal, tenant v landlord: an agent/tenant **can't interplead** to make his principal/landlord prove title — except where a **third person** claims through that principal/landlord
- **r.6** costs to the plaintiff as a **charge** on the thing

✅ *Conclusion (write this)*

An interpleader suit protects an **innocent stakeholder** from being sued twice: he deposits the thing, is **discharged**, and the real rivals fight it out in one suit — avoiding **multiplicity** and **double liability**.

🏠 *Real life*

A bank holds a **fixed deposit** of a man who died; his **wife** and **brother** both claim it. The bank (no interest of its own) files an **interpleader suit**, deposits the money, and is **discharged**; the wife and brother fight it out.

🧠 *Memory trick*

Interpleader = **S-N-R-C**: **S**ame thing · **N**o interest · **R**eady to deliver · no **C**ollusion. Tenant ≠ interpleader against landlord (r.5).

Cluster 13

Appeals, Reference, Review & Revision

TIER 1 · must prepare | Unit IV · S.96–115, O.XLI–XLVII | asked 13× in 2013–2025 papers

How it was asked (2013–2020): A 2015 Revision · A 2019 Review and revision; Appeal against appellate decree · A 2020 Appeals from appellate decrees · B 2015 First v second appeal · B 2017 General rules relating to appeals · B 2019 Types of appeals · C 2016 Review petition in the appellate court?
Recent papers (2021–2025): A 2021 Revision · A 2022 Revision · A 2025 Appeals from appellate decrees · B 2022 Appeals from original decrees & orders · B 2023 Grounds of revision

Core idea

Appeal = a superior court **re-hears** the case (a **statutory right**). **Review** = the **same court** looks again for a patent error or new evidence. **Revision** = the **High Court supervises** a subordinate court's **jurisdictional** errors. **Reference** = a lower court **asks** the High Court on a doubtful **law's validity**.

PART B · ESSAY

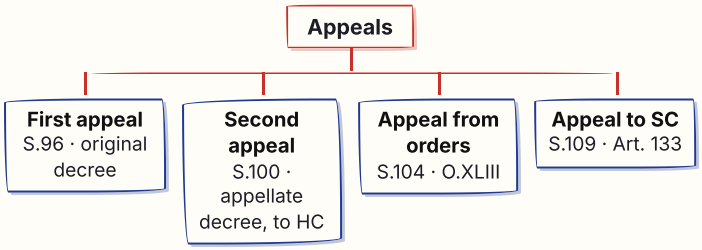
Appeals — types, first v second appeal and general rules

Q. What is an appeal? Types; distinguish first and second appeal; general rules. (2015, 2017, 2019)

1. Meaning

An **appeal** is the **judicial examination of a lower court's decision by a higher court**. It is a **creature of statute** — there is **no inherent right of appeal**; it exists only where a law gives it (**Ganga Bai v Vijay Kumar**). Once given, it is a **vested right** from the date the suit was filed.

2. Types of appeals under the CPC



3. First appeal — S.96–99A, O.XLI

- **S.96** appeal from **every original decree** to the court authorised to hear appeals — on **facts and law**; **ex parte decree** appealable (96(2))
- **no appeal**: from a **consent decree** (96(3)); small-cause suits up to **₹10,000** except on a question of **law** (96(4))
- **S.97** preliminary decree not appealed → **can't** be questioned in appeal from the final decree · **S.99** no reversal for **misjoinder / non-joinder** or irregularity **not affecting merits** (except necessary party)
- **limitation**: **90 days** to the High Court, **30 days** to other courts (**Art. 116**)

O.XLI rule	Point
1	**memorandum of appeal** + copy of decree, grounds concise
3A	**delay** application with the appeal (S.5)
5	**appeal is not a stay**; stay on sufficient cause + **security**
11	**summary dismissal** after hearing the appellant
22	**cross-objection** by respondent within **30 days** of notice
23, 23A, 25	**remand** · frame issues & refer
27	**additional evidence** — wrongly refused / not available despite diligence / court needs it
31	judgment: points, decision, reasons, relief

S.107 powers of the appellate court: **determine finally**, **remand**, **frame issues** and refer, **take additional evidence** — the same powers as the trial court.

⚖️ **Santosh Hazari v Purushottam Tiwari** (2001)

Story — A first appellate court **reversed** the trial court's findings without discussing the evidence and reasons given below.

Held — A first appeal is a **valuable right** — the appellate court must deal with **all issues and evidence** and give **reasons**, especially when reversing. Also explained a **substantial question of law** (debatable, not settled, material to the decision).

Why it matters — The **duty of a first appellate court** + the S.100 test.

Trick — Reverse with reasons, not with a stroke.

4. Second appeal — S.100–103, O.XLII

- lies to the **High Court** from an **appellate decree** only if the case involves a **substantial question of law** (**1976**)
- memorandum must **state** the question; HC **formulates** it at admission and hears only on it (may hear another for reasons)
- HC may decide **facts** only in limited cases (**S.103**) · **S.100A**: **no Letters Patent appeal** from a single judge · **S.102**: **no second appeal** in money suits up to **₹25,000**

Point	First appeal (S.96)	Second appeal (S.100)
From	**original** decree	**appellate** decree
To	District Court / High Court	**High Court** only
Grounds	**facts + law**	only a **substantial question of law**
Court's role	re-hearing of the whole case	limited to the formulated question
Limitation	90 / 30 days	90 days

5. Appeals from orders — S.104, O.XLIII

Only **listed orders** are appealable (e.g. **return of plaint**, refusal to set aside **dismissal / ex parte decree**, **injunction**, **receiver**, compensation under S.95). **No second appeal** from an appellate order (**S.104(2)**). Non-appealable orders can be challenged in the **appeal against the decree** (**S.105**). **Hero Vinoth v Seshammal** (2006): guidelines on what is a substantial question of law.

✅ *Conclusion (write this)*

Appeals are **statutory**: a **first appeal** re-tests facts and law; a **second appeal** is a narrow gate for **substantial questions of law**; **orders** are appealable only when listed. The scheme balances **correctness** with **finality**.

🧠 *Memory trick*

First = Facts + law · Second = Substantial law only. O.XLI numbers: **5 stay · 22 cross · 23 remand · 27 new evidence**.

PART A · SHORT NOTE *Review (S.114, O.XLVII)*

A person aggrieved by a decree/order — **appealable but not appealed**, not appealable, or a small-cause decision — may apply for **review to the same court** on: ① **discovery of new and important matter or evidence** not within his knowledge / not producible despite **due diligence**; ② **mistake or error apparent on the face of the record**; ③ **any other sufficient reason** (analogous). Heard by the **same judge** if available (r.5); **no review of a review order** (r.9); limitation **30 days** (Art. 124). **Aribam Tuleshwar Sharma v Aribam Pishak Sharma** (1979): review is **not an appeal in disguise**.

⚖️ **Aribam Tuleshwar Sharma v Aribam Pishak Sharma** (1979)

Story — A court in Manipur, on a **review** petition, re-heard the matter and **reversed** its own earlier order as if it were an appeal.

Held — Review is **not an appeal in disguise**; it lies only for **new and important matter** (despite diligence), an **error apparent on the face of the record**, or an **analogous** reason. Re-arguing the merits is not allowed.

Why it matters — The **scope of review** (S.114, O.XLVII).

Trick — Review = spotting an obvious mistake, not a second innings.

PART A · SHORT NOTE *Revision (S.115)*

The **High Court** may call for the record of any **case decided** by a subordinate court in which **no appeal lies**, if the court: (a) exercised a jurisdiction **not vested** in it, (b) **failed to exercise** a jurisdiction vested, or (c) acted **illegally or with material irregularity**. **Proviso (1999)**: no revision against an order unless, if made in the applicant's favour, it would have **finally disposed of the suit**. Revision is **not a stay** · deals with **jurisdiction**, not errors of fact. **Shiv Shakti Co-op Housing v Swaraj Developers** (2003) · **Art. 227** supervision still available (**Radhey Shyam v Chhabi Nath**, 2015).

	Appeal	Review	Revision
Court	**superior** court	**same** court	**High Court**
Nature	**right** (statutory)	limited re-look	**discretionary** supervision
Grounds	facts + law	new matter / error apparent / sufficient reason	**jurisdictional** error
When	where appeal lies	appeal not filed / none lies	**no appeal lies**

⚖️ **Shiv Shakti Co-op Housing Society v Swaraj Developers** (2003)

Story — After the **1999 amendment**, a party filed a **revision** against an **interlocutory order** that would not have ended the suit even if decided in its favour.

Held — Under the **proviso to S.115**, revision lies only if the order, had it been made in the applicant's favour, would have **finally disposed of the suit**; the amendment was meant to cut down **delay**. **Major S.S. Khanna v Brig. F.J. Dillon** (1964) — 'case decided' includes interlocutory orders, but now subject to this proviso.

Why it matters — Effect of the **1999 amendment** on revision.

Trick — Revision only if it could end the suit.

PART A · SHORT NOTE *Reference (S.113, O.XLVI)*

A subordinate court may **state a case** and **refer** it to the **High Court** where it **doubts the validity** of an **Act, Ordinance or Regulation** (or a provision) necessary to decide the case, and the High Court/SC has not already declared it invalid. The case is **stayed** till the HC decides (O.XLVI r.1–3).

PART C · PROBLEM *2016*

Q. A judgment was passed against X by a lower court. He wants to file a review petition in the next appellate court. Is it maintainable?

Issue	Can review be sought in a higher court?
Law	**S.114 + O.XLVII r.1** — review lies to **the court which passed** the decree/order; **r.5** — heard by the **same judge**; the higher court's remedy is **appeal** (S.96) or **revision** (S.115).
Apply	Review is a **re-look by the same court** at its own decision for a **patent error or new evidence**. An appellate court has no review jurisdiction over a lower court's decree.
Decision	**Not maintainable — X must file review before the same (lower) court, or file an appeal in the appellate court.**

Cluster 14

Limitation I — Object, General Principles, S.3–5 & S.9, Bar of Remedy, Extinguishment (S.27)

TIER 1 · must prepare | Unit V · Limitation Act 1963 | asked 13× in 2013–2025 papers

How it was asked (2013–2020): A 2016 Object of limitation · A 2017 General principles · B 2013 "When time begins to run it continues to run" · B 2014 Nature & scope of S.4 · B 2015 Object & general principles · B 2016 General principles · C 2016 Condonation petition for a time-barred suit · C 2017 How property rights extinguish · C 2018 Same — S.27 · C 2019 Limitation expires in summer vacation · C 2020 Recovering a time-barred debt already paid
Recent papers (2021–2025): B 2025 Concept & general principles of limitation · C 2025 Suit after 14 years of defendant's possession

Core idea

The **Limitation Act, 1963** fixes the **time within which** a suit, appeal or application must be filed. After that the court **must dismiss** (S.3). It **bars the remedy, not the right** — except for **possession of property**, where the **right itself dies** (S.27).

Real life

Kiran lent ₹50,000 in 2019 and did nothing till 2024. The **3-year** period ended in 2022. In 2024 the court **must dismiss** his suit even if the borrower doesn't raise it — but if the borrower **voluntarily pays**, he can't later ask for it back: the **debt still existed**.

PART B · ESSAY

Object of limitation and its general principles

Q. Explain the object of the law of limitation and its general principles. (2015, 2016, 2017)

1. Meaning & object

Limitation means the **period prescribed by law** for bringing legal proceedings. The **Limitation Act, 1963** (replacing the 1908 Act) has **32 sections** and a **Schedule of 137 Articles** giving periods (the Schedule is excluded from the syllabus).

- **Certainty & finality** — *interest reipublicae ut sit finis litium*: it is in the public interest that **litigation ends**
- **Vigilance** — *vigilantibus non dormientibus jura subveniunt*: the law **helps the vigilant**, not those who **sleep** over their rights
- **Evidence** — with time, **witnesses die and documents are lost**; stale claims are hard to judge fairly
- **Peace & repose** — a person shouldn't live under a **sword of litigation** forever
- **Public policy** — people must assert rights **within a reasonable time**

★ Limitation is not meant to **destroy rights**; it fixes a **lifespan for remedies** (*Rajender Singh v Santa Singh*, 1973; *N. Balakrishnan v M. Krishnamurthy*, 1998).

2. General principles

1. **Bars the remedy, not the right** — a time-barred debt **still exists**: it can be **paid**, **set off** in equity, **secured**, and a **written promise** to pay it is valid (**Contract Act S.25(3)**) — *Bombay Dyeing v State of Bombay* (1958); *Punjab National Bank v Surendra Prasad Sinha* (1993).
2. **Exception — S.27**: for **possession of property**, when the period ends the **right itself is extinguished**.
3. **S.3 — mandatory dismissal**: every suit, appeal or application filed after the period **shall be dismissed**, even if limitation is not set up as a defence — the court must check it **on its own**.
4. **Strict construction** — courts can't extend time on equity or hardship; only the **Act** extends it (S.4–24).
5. **Procedural law** — applies to proceedings pending/started after it came into force; but a **barred right is not revived** by a later longer period.
6. **Applies to courts**, not to tribunals or executive bodies unless their law applies it (S.29(2)); **writs** follow the analogy (**laches**).
7. **S.9 — continuous running**: once time begins to run, no subsequent disability stops it.
8. **S.4** — period ends on a **court holiday** → file on the **reopening day** · **S.5** — appeals & applications (not suits) can be filed late for **sufficient cause**.
9. **Suits by the Government** get **30 years** (Art. 112) — echo of *nullum tempus occurrit regi*.

Bare Act — Limitation Act S.3(1)

… every suit instituted, appeal preferred, and application made after the prescribed period shall be dismissed, although limitation has not been set up as a defence.

Bombay Dyeing & Mfg. Co. v State of Bombay (1958)

Story	Wages owed to workers stayed unpaid for years; a later law required the money to be paid into a welfare fund. The company said the workers' claims were **time-barred**, so nothing was owed.
Held	The **Limitation Act bars only the remedy, not the right** — the debt **subsisted**, so the State could validly take it.
Why it matters	The root case for '**remedy barred, right alive**'.
Trick	Clock stopped the suit, not the debt.

✅ *Conclusion (write this)*

The law of limitation buys **certainty, finality and fairness** by fixing a lifespan for remedies; it is **mandatory** (S.3), **strictly construed**, extended only by the Act itself, and — except for possession (S.27) — it **never kills the right**.

🧠 *Memory trick*

Object = **C-V-E-P**: **C**ertainty · **V**igilance · **E**vidence · **P**eace. Principles: **Remedy not right · S.3 dismiss anyway · S.9 never stops · S.27 kills right**.

PART B · ESSAY

"When time begins to run, it continues to run" — S.9

Q. Explain the statement with the help of case law. (2013)

📖 *Bare Act — Limitation Act S.9*

Where once time has begun to run, no subsequent disability or inability to institute a suit or make an application stops it. Proviso: where **letters of administration** to the estate of a creditor are granted to his debtor, the running of time for a suit to recover the debt is **suspended** while the administration continues.

- **Meaning**: limitation runs **continuously**; later events (insanity, minority of an heir, the creditor going abroad, death) do **not** pause it
- **Disability must exist at the start** for S.6 to help; a disability arising **after** the clock starts is **useless** (S.9)
- **Exceptions only by the Act**: S.4 (holiday), S.12–15 (exclusions), S.18–19 (fresh start), S.6–8 (disability at the start) and the S.9 proviso
- Example: A's cause arose in **2020**; he became **insane in 2021** → time still runs; suit due by **2023**

Courts have repeatedly held that once a cause of action accrues and time starts, it is **not suspended** except as the Act provides — e.g. **death** of the person entitled after time began doesn't stop it (the legal representative must sue within the balance).

🧠 *Memory trick*

S.9 = the clock has **no pause button** — only the Act's own buttons (S.4, 12–15, 18–19).

⚖️ **Karnataka Board of Wakf v Government of India** (2004)

Story	The Wakf Board claimed a property as wakf; the Government claimed it had become owner by **adverse possession**.
Held	Adverse possession needs **actual, open, continuous, hostile** possession **to the knowledge of the true owner** for the full period, with clear proof of **when** it started — nec vi, nec clam, nec precario. A person claiming it must plead and prove these facts; mere long possession is not enough.
Why it matters	Elements of **adverse possession** for S.27 answers.
Trick	Open, hostile, continuous — and dated.

PART B · ESSAY

Nature and scope of S.4 — when the court is closed

Q. Discuss the nature and scope of S.4 of the Limitation Act. (2014; problem 2019)

📖 *Bare Act — Limitation Act S.4*

Where the **prescribed period** for any suit, appeal or application **expires on a day when the court is closed**, it may be instituted **on the day the court reopens**. **Explanation**: a court is closed if during any part of its **normal working hours** it remains closed.

- applies only to the **period prescribed** under the Act — **not** to an extra **condonable** period (*Assam Urban Water Supply v Subash Projects*, 2012)
- covers **holidays, vacations, strikes**, any day the court/office is closed during working hours
- **S.10 General Clauses Act, 1897** gives the same benefit for other Central Acts
- it does **not** extend time — it only lets you **file on the next working day**

PART C · PROBLEM *2019*

Q. Limitation expires during summer holidays when the court is closed. When can the suit be filed?

Issue	Effect of court vacation on the last day of limitation.
Law	**S.4** + Explanation; **S.3** (otherwise dismissal).
Apply	The period ends **during the vacation**; the court is **closed**. S.4 lets the plaintiff file on the **day the court reopens** (if a vacation officer receives plaints, practice may differ — but S.4 protects).
Decision	**The suit can be filed on the reopening day after the vacation — it is within time under S.4.**

PART C · PROBLEM *2016*

Q. A plaintiff whose cause of action is time-barred files a condone-delay petition along with his suit. Is it maintainable?

Issue	Can delay in filing a **suit** be condoned?
Law	**S.5** applies only to **appeals and applications** (other than O.XXI) — not to suits; **S.3** mandatory dismissal; extensions only under S.4–24 (disability, exclusions, acknowledgment, part-payment, fraud).
Apply	A suit is neither an appeal nor an application. Unless the plaintiff brings himself within S.6–8, 12–17, 18–19 (e.g. **acknowledgment**, **fraud discovered later**), the court has **no power** to condone.
Decision	**Not maintainable — S.5 doesn't apply to suits; the plaint must be rejected (O.VII r.11(d)) / suit dismissed under S.3, unless an exclusion/fresh-start section applies.**

PART B · ESSAY

Extinguishment of right to property — S.27

Q. How and when are a person's rights to property extinguished under the Limitation Act? (2017, 2018)

📖 *Bare Act — Limitation Act S.27*

At the **determination of the period** limited to any person for instituting a suit for **possession of any property**, his right to such property shall be extinguished.

- the only section where limitation **kills the right**, not just the remedy
- **Art. 65**: suit for possession based on **title** — **12 years** from when the defendant's possession becomes **adverse**; **Art. 64**: possession lost, based on earlier possession — 12 years from **dispossession**; **Art. 112**: **Government** — **30 years**
- the trespasser in **adverse possession** for the full period **acquires title** — possession must be nec vi, nec clam, nec precario (**not by force, not secret, not with permission**), **open, continuous, hostile**, with **intent** to own
- applies to **property** (movable and immovable) and to suits for possession

⚖️ **Ravinder Kaur Grewal v Manjit Kaur** (2019)

Story	A person who had been in open, hostile possession of land for over 12 years was being threatened with eviction; lower courts said adverse possession can only be a **defence**.
Held	3-judge bench: once the owner's right is **extinguished (S.27)**, the adverse possessor **acquires title** and can **sue** to protect it — adverse possession is a **sword as well as a shield**.
Why it matters	Latest law on S.27 + Art. 65.
Trick	12 years open + hostile = owner's right dead, possessor's title born.

Karnataka Board of Wakf v Govt of India (2004): adverse possession must be **peaceful, open, continuous** and **hostile** to the true owner; the claimant must show **when** it began.

PART C · PROBLEM *2017 / 2018*

Q. How and when does a person's right to property extinguish under the Limitation Act?

Issue	When does limitation destroy the right to property itself?
Law	**S.27** + **Art. 64, 65, 112**; adverse possession elements.
Apply	If the owner does **not sue for possession** within **12 years** (30 for Govt) from when another's **adverse possession** began (open, hostile, continuous, without permission), **S.27** extinguishes his right; the possessor gets title.
Decision	**The right is extinguished at the end of the limitation period for a possession suit — 12 years of adverse possession (30 against the Govt) — under S.27.**

PART C · PROBLEM *2020*

Q. X paid a time-barred debt to Y and now sues to recover the payment. Is the suit maintainable?

Issue	Can a debtor recover what he paid on a time-barred debt?
Law	Limitation **bars the remedy, not the right** (S.3, *Bombay Dyeing*); **Contract Act S.25(3)** (promise to pay time-barred debt valid), **S.60** (creditor may apply payment to a time-barred debt); S.27 not applicable (not possession).
Apply	The debt **still existed**; only Y's **remedy** by suit was barred. A **voluntary payment** of an existing debt is a valid discharge — not money paid **without consideration** or by mistake.
Decision	**Not maintainable — the payment discharged a subsisting debt; X cannot recover it.**

PART C · PROBLEM *More likely problems — quick decisions*

Problem	*Decision · law*
Defendant forgets to plead limitation; suit is 2 years late.	Court **must dismiss** — S.3 (limitation need not be pleaded).
Creditor became insane a year after the loan became due.	Time **keeps running** — S.9; disability must exist at the start.
Trespasser in open, hostile possession for 13 years; owner sues.	Owner's right **extinguished** (S.27, Art. 65); trespasser has title (*Ravinder Kaur Grewal*).
Last day of appeal falls on a Sunday.	File on **Monday** — S.4.
Suit by the State to recover land from a trespasser after 20 years.	**In time** — 30 years for the Government (Art. 112).

Cluster 15

Limitation II — Legal Disability, Computation, Acknowledgment, Part-payment, Extension & Condonation

TIER 1 · must prepare | Unit V · S.5–8, 12–19 | asked 18× in 2013–2025 papers

How it was asked (2013–2020): A 2013 Computation; Effect of part payment · A 2015 Legal disability · A 2018 Acknowledgement · A 2019 Legal disability · A 2020 Condonation of delay · B 2017 Extension of limitation; acknowledgement · B 2018 Legal disability & effect on computation · B 2019 Grounds for extension; condonation · B 2020 How limitation is computed · C 2015 Plaintiff in jail — can delay be condoned?
Recent papers (2021–2025): A 2022 Legal disability · A 2023 Legal disability; Acknowledgment; Condonation · A 2025 Acknowledgment · B 2022 Condonation of delay · C 2022 40-day delay in set-aside petition

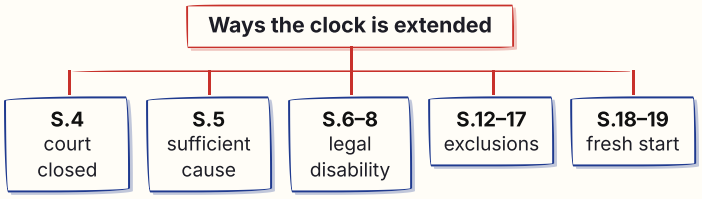
💡 *Core idea*

Time can be **extended** only in the Act's ways: **condonation** for appeals/applications (S.5), **legal disability** at the start (S.6–8), **exclusions** while computing (S.12–17), and a **fresh start** by **acknowledgment** (S.18) or **part-payment** (S.19).

PART B · ESSAY

Extension of the period of limitation & condonation of delay

Q. When can the limitation period be extended? When can delay be condoned? (2017, 2019, 2020)



S.5 — Condonation of delay

📖 *Bare Act — Limitation Act S.5*

Any **appeal** or any **application**, other than an application under any of the provisions of **Order XXI** CPC, may be admitted after the prescribed period if the appellant or applicant satisfies the court that he had sufficient cause for not preferring it within such period. **Explanation**: being misled by any order, practice or judgment of the High Court is sufficient cause.

- **not for suits** · not for **execution** applications (O.XXI)
- **sufficient cause** = a reason beyond control, shown **bona fide**; no negligence or inaction — illness, wrong legal advice, official delays, mistaken bona fide proceedings
- the **whole period of delay** must be explained (not 'each day' mechanically) · the court has **discretion**

⚖️ **Collector, Land Acquisition, Anantnag v Mst. Katiji** (1987)

Story — The State's appeal against enhanced land compensation was **4 days late**; the High Court refused to condone the delay.

Held — Supreme Court condoned it and laid down a **liberal approach**: ordinarily a litigant gains nothing by delay; **substantial justice** beats technicalities; there is **no presumption** that delay is deliberate; the **State** is treated like any other litigant.

Why it matters — The **charter of liberal condonation**.

Trick — 4 days late — justice wasn't.

⚖️ **N. Balakrishnan v M. Krishnamurthy** (1998)

Story — A defendant's application to set aside an **ex parte decree** was filed after a very long delay (over 800 days) because his advocate failed him; the High Court refused to condone.

Held — Supreme Court **condoned** with costs: the **length** of delay is not decisive — the **acceptability of the explanation** is; rules of limitation are meant to see that parties don't sleep, **not to destroy rights**; courts should be **liberal** where no mala fides is shown.

Why it matters — Twin of *Katiji* — quote both.

Trick — Explain well, and even long delay is forgiven.

N. Balakrishnan v M. Krishnamurthy (1998): the **acceptability of the explanation**, not the length of delay, decides. **Ram Lal v Rewa Coalfields** (1962): a party may file on the **last day**; delay **after** expiry must be explained. **Esha Bhattacharjee** (2013): liberal, but **not a licence** for negligence.

S.6–8 — Legal disability

- **S.6(1)**: person entitled is a **minor, insane or idiot when time begins** → may sue **within the same period after the disability ends**
- **S.6(2)** two disabilities at the start, or a second **before the first ends** → after **both** end · **S.6(3)** disability till death → **legal representative** gets the same period from death

- **S.7** one of several joint claimants under disability: if a **discharge** can be given by the others without him, time runs **against all**; if not, it runs against none till he can
- **S.8** extension **never beyond 3 years** from cessation of disability or death; not for **pre-emption** suits
- **exhaustive** list — **imprisonment, illness, poverty, ignorance** are not legal disabilities

S.12–17 — Exclusions while computing

Section	Time excluded
12(1)	the **day** from which the period is reckoned
12(2)–(4)	for appeal/revision/review: the **day of judgment** + time **to obtain a certified copy** of the decree/judgment/award
13	time spent on an application to sue as an **indigent** person (if refused)
14	time spent **bona fide** with **due diligence** in a **court without jurisdiction** (or a cause of like nature) — same matter, same parties
15	time of **stay/injunction**; **notice period** (S.80 — 2 months); sanction; **defendant absent from India**
16	**death** before the right accrues — from when a legal representative exists
17	**fraud or mistake** — time runs from **discovery**; document **concealed** — from when it can be produced

Consolidated Engineering Enterprises v Principal Secretary, Irrigation Dept. (2008): S.14 is read **liberally** to advance justice; good faith + due diligence are the keys.

⚖️ **Consolidated Engineering Enterprises v Principal Secy., Irrigation Dept.** (2008)

Story — A party challenged an arbitral award in a court that **had no jurisdiction**; by the time it reached the right court, the short limitation had expired.

Held — **S.14** applies (to arbitration challenges too): time spent **bona fide** with **due diligence** in a court **without jurisdiction** is excluded; S.14 must be read **liberally** to advance justice.

Why it matters — Leading case on **S.14**.

Trick — Wrong court, honest effort — time saved.

S.18–19 — Fresh start

Acknowledgment (S.18)

written **acknowledgment of liability** · **signed** by the party/agent · made **before the period expires** · fresh period from the date **signed** · amount need not be stated · oral evidence of contents not allowed

v/s

Part-payment (S.19)

payment on account of a **debt or interest** · by the debtor/agent · **before expiry** · shown in the payer's **handwriting or a writing signed** by him · fresh period from the date of **payment**

⚖️ **Shapoor Freedom Mazda v Durga Prosad Chamaria** (1961)

Story — A debtor's letter referred to the creditor's claim; the creditor relied on it as an **acknowledgment** to save his suit from limitation.

Held — An acknowledgment must relate to a **subsisting liability**, show a **jural relationship** (debtor–creditor), and indicate an **intention to admit** it — it may be **inferred** from the words used; it need not promise to pay.

Why it matters — The **test of acknowledgment** under S.18.

Trick — Admit the relation, restart the clock.

Other provisions

- **S.20** acknowledgment/payment by an **agent** or by a person liable to pay · **S.21 new plaintiff/defendant** — suit deemed filed against him when added
- **S.22 continuing breach/tort** — fresh period every moment it continues · **S.23** acts actionable only on special damage — from when the **injury** results

✅ *Conclusion (write this)*

The clock is extended **only by the Act**: S.5 for appeals/applications on sufficient cause (liberally — *Katiji*), S.6–8 for disability present **at the start** (max 3 years after), S.12–17 exclusions, and S.18–19 **fresh starts** — acknowledgment or part-payment **in writing, before expiry**.

🧠 *Memory trick*

Disability = **M-I-I** (**M**inor · **I**nsane · **I**diot) — **not** jail, illness or poverty. Fresh start = **W-S-B**: **W**riting · **S**igned · **B**efore expiry.

PART C · PROBLEM *2015*

Q. The limitation period for a suit is 3 years. The plaintiff was in jail during that period. Can he seek condonation after release?

Issue — Does imprisonment extend or excuse limitation for a suit?

Law — **S.6** — disabilities are only **minority, insanity, idiocy** (exhaustive); **S.5** — not for suits; **S.9** — continuous running; **S.3** — dismissal.

Apply — Imprisonment is **not a legal disability**; he could sue through an agent or advocate. Even if jailed after time began, **S.9** doesn't stop the clock. **S.5** condonation is unavailable for a **suit**.

Decision — **No — the suit is time-barred and must be dismissed (S.3); neither S.6 nor S.5 helps.**

PART C · PROBLEM

More likely problems — quick decisions

Problem	Decision · law
Debtor signs a letter admitting the debt after the 3 years expired.	**No fresh period** under S.18 (must be before expiry) — but it may be a valid **promise** under Contract Act S.25(3) giving a new cause.
Debtor pays ₹5,000 in cash before expiry; creditor has only an oral witness.	**No fresh period** — S.19 needs the payment to appear in the **payer's handwriting** or a **writing signed** by him.
A minor's 3-year money claim arose when he was 15.	He may sue within the **same period counted from 18** (S.6) — i.e. by **21**; the extension can never exceed **3 years** after the disability ends (S.8).
Suit filed in a wrong court in good faith for 1 year, returned.	That year is **excluded** (S.14).
Appeal 40 days late because the advocate fell ill.	**Condonable** — sufficient cause (S.5; *Katiji*).
Application to set aside an ex parte decree filed 40 days after the decree (2022).	Limit is **30 days** (Art. 123 — from the decree, or from knowledge if summons wasn't served); the 10-day delay is condonable under **S.5** on sufficient cause.

PART A · SHORT NOTE

Computation (summary)

Count from the date in the **Schedule's third column** (e.g. date of loan, of dispossession, of breach) → **exclude** the first day (S.12(1)) and the periods in **S.12–17** → add any **fresh period** (S.18–19) → if the last day is a **holiday**, file on reopening (S.4) → for appeals/applications, seek **S.5** if late. **Gregorian calendar** applies (S.24).

PART A · SHORT NOTE

Effect of part-payment (S.19)

A **payment on account of a debt or interest**, made **before** the period expires by the person liable (or his agent), gives a **fresh period** from the **date of payment** — provided the payment appears in the **handwriting** of, or in a **writing signed** by, the payer. Payment of **rent/produce** of mortgaged land counts as payment (Explanation).

Cluster 16

Safety Net — Syllabus Topics Not Asked in 2013–2020

TIER 3 · short-note level | Units I–IV | asked 3× in 2013–2025 papers

How it was asked (2013–2020): A — Codification & principal features · A — Transfer of suits · A — Institution & bars of suits · A — Hearing, examination, admissions, documents, affidavits, adjournments · A — Costs · A — Withdrawal & compromise (O.XXIII) · A — Limitation Act S.2, 10, 11, 25–26, 29–31 · A — Incidental & supplementary proceedings; S.144, 151
Recent papers (2021–2025): A 2021 Adjournments; Inherent powers · A 2022 Admissions

Core idea

These syllabus topics did **not** appear in the 2013–2020 papers, but they are **in the syllabus** and can come as a **short note** any year. Each box below is a **ready Part A answer**.

PART A · SHORT NOTE

Codification & principal features of the CPC

Before 1859, each presidency had its own rules. **Codes of 1859, 1877, 1882** were followed by the present **Code of Civil Procedure, 1908** (Act V of 1908), in force from **1 January 1909**. Major amendments: **1976** (counter-claim, S.100 substantial question of law, O.I r.9 proviso), **1999/2002** (time limits, S.89 ADR, S.115 proviso, courier/email service), **Commercial Courts Act 2015** (strict timelines in commercial suits).

- **two parts**: **158 sections** (substantive, amendable only by Parliament) + **51 Orders** in the First Schedule (rules of procedure; **High Courts may amend** — S.122)
- **uniform procedure** for all civil courts; **S.9** — every civil suit triable unless barred
- **filters**: S.80 notice, O.VII r.11 rejection, S.10–11, O.II r.2
- **time limits** for summons, written statement, adjournments, judgment · **S.89** settlement · **S.151** inherent powers as a safety valve

*The CPC is a **consolidating and amending** law — procedure is the **handmaid of justice** (Sangram Singh).*

PART A · SHORT NOTE

Salient features of the 1999 & 2002 amendments

- **speed**: summons within **30 days**; written statement **30 → 90 days**; **3 adjournments** max; judgment in **30–60 days**
- **evidence**: examination-in-chief by **affidavit**; cross-examination before a **commissioner** (O.XVIII r.4); witness list in **15 days**
- **ADR**: **S.89** + O.X r.1A–1C · **service** by courier, fax, email (O.V r.9)
- **S.115 proviso** — no revision of interlocutory orders · **S.100A** — no Letters Patent appeal · **S.102** — no 2nd appeal up to ₹25,000 · **O.VI r.17 proviso** — amendment after trial only with due diligence · **S.26(2)** plaint with affidavit

Upheld in **Salem Advocate Bar Association v UOI** (2003, 2005), which also framed model ADR and case-management rules.

PART A · SHORT NOTE

Transfer of suits (S.22–25)

- **S.22**: where a suit may be filed in **two or more courts**, the **defendant** may apply for transfer **at the earliest** opportunity, after notice to others
- **S.23**: the application goes to the **common appellate court** / the **High Court**
- **S.24**: **general power** of the **High Court / District Court** — on application or **suo motu**, at **any stage** — to transfer, withdraw, try or retry a suit/appeal
- **S.25**: the **Supreme Court** may transfer from one **State to another** for the ends of justice

Grounds: **convenience** of parties and witnesses, reasonable apprehension of **bias**, avoiding **conflicting decisions** (connected suits), **women** in matrimonial cases (usually to the wife's place). **Kulwinder Kaur v Kandi Friends Education Trust** (2008) — factors under S.24; **Durgesh Sharma v Jayshree** (2008) — inter-State transfer only under S.25.

PART A · SHORT NOTE

Institution & bars of suits

S.26 + O.IV: a suit is **instituted by presenting a plaint** (in duplicate) to the court or its officer, with an **affidavit** (S.26(2)); entered in the **register of civil suits**. **Bars** that stop a suit: ① **express/implied bar** (S.9), ② **sub judice** (S.10 — stays trial), ③ **res judicata** (S.11), ④ **S.12** — no fresh suit where barred by **O.II r.2, O.IX r.9, O.XXII r.9, O.XXIII r.1**, ⑤ **S.80** notice not given, ⑥ **limitation** (Limitation Act S.3), ⑦ no cause of action (O.VII r.11).

PART A · SHORT NOTE

Hearing & examination of witnesses (O.XVIII)

- **r.1** the **plaintiff begins** (unless the defendant admits the facts and pleads new facts)
- **r.2** statements & evidence; **written arguments** may be filed before oral arguments
- **r.4 examination-in-chief by affidavit**; **cross and re-examination** in court or before a **commissioner** (**Ameer Trading Corp. v Shapoorji Data Processing**, 2004 — valid)
- **r.5** evidence recorded in open court · **r.12** demeanour notes · **r.17** court may **recall** any witness · **r.18** court may **inspect** property

PART A · SHORT NOTE

Admissions (O.XII)

An **admission** is a statement suggesting an **inference about a fact in issue** (BSA). Under O.XII it may be: **in pleadings** (r.1 notice of admission of the case), by **notice to admit documents** (r.2) or **facts** (r.4), or **otherwise** (oral/written). **r.6**: the court may, **at any stage**, on application or on its own, give **judgment on admissions** — without waiting for the other issues. **Uttam Singh Duggal v United Bank of India** (2000): r.6 enables a **speedy judgment** where admissions are **clear and unequivocal**.

PART A · SHORT NOTE

Production, impounding & return of documents (O.XIII)

- **r.1** parties produce **originals** of documents (already filed with pleadings) **on or before settlement of issues**
- **r.3** court may **reject** irrelevant/inadmissible documents with reasons · **r.4** admitted documents **endorsed and marked** (number, party, date, signature) → **exhibits** (Ex. P1, Ex. D1)
- **r.7** admitted documents form part of the **record**; others **returned** · **r.8** court may **impound** a document (keep it in custody of an officer) for good cause — e.g. **forged** or insufficiently stamped
- **r.9** documents **returned** after the time for appeal, on a **receipt**; earlier if a certified copy is substituted

PART A · SHORT NOTE

Affidavits (O.XIX)

An **affidavit** is a **written statement of facts on oath** before an authorised officer. **r.1** court may order any fact to be **proved by affidavit** (with right of cross-examination if asked); **r.2** court may order the deponent to **attend for cross**; **r.3** affidavits must be confined to facts **within the deponent's knowledge** — except **interlocutory** applications, where statements of **belief** are allowed if the **grounds** are stated. Since 2002, examination-in-chief is by affidavit (O.XVIII r.4) and every plaint is supported by one (S.26(2)).

PART A · SHORT NOTE

Adjournments (O.XVII)

- court may adjourn for **sufficient cause**, recording reasons, and **award costs** (r.1)
- **proviso**: no more than three adjournments to a party during the hearing
- not on the ground that a pleader is busy elsewhere (except in genuine cases)
- **r.2** party absent on the adjourned day → court disposes under **O.IX** · **r.3** party fails to produce evidence/do an act → court may **decide forthwith**

Shiv Cotex v Tirgun Auto Plast (2011): routine adjournments are an **abuse**; courts must refuse them and impose costs.

PART A · SHORT NOTE

Costs (S.35, 35A, 35B)

- **S.35** costs are in the **court's discretion**, but ordinarily **follow the event** (loser pays); reasons if not
- **S.35A compensatory costs** for **false or vexatious** claims/defences — up to **₹3,000**
- **S.35B** costs for **causing delay** — payment is a condition for further prosecution
- **Salem Advocate Bar Assn. v UOI** (2005): costs must be **realistic**, not notional, to deter frivolous litigation

PART A · SHORT NOTE

Incidental & supplemental proceedings; safety-valve sections

- **Incidental (Part III, S.75–78)**: **commissions** — witnesses, local investigation, accounts, partition, scientific investigation, ministerial acts, sale; **letters of request** to foreign courts
- **Supplemental (Part VI, S.94–95)**: arrest & attachment **before judgment**, **temporary injunction**, **receiver**, other interlocutory orders; **S.95** compensation up to **₹50,000** for orders obtained on insufficient grounds
- **S.144 restitution** — when a decree is **varied or reversed**, the court restores the parties to their **former position** (*actus curiae neminem gravabit*) · **S.148** enlargement of time (max **30 days** total) · **S.148A** caveat (**90 days**)
- **S.151 inherent powers** — to secure the **ends of justice** or prevent **abuse of process**, where the Code is **silent**; not against express provisions (**Manohar Lal Chopra v Seth Hiralal**, 1962; **Padam Sen v State of U.P.**, 1961) · **S.152** correct **clerical/arithmetical** errors · **S.153** general power to amend

PART A · SHORT NOTE

Withdrawal & compromise of suits (O.XXIII)

- **r.1(1)** plaintiff may **abandon** the suit (or part) at any time — **no fresh suit** on the same subject matter (r.1(4))
- **r.1(3)** court may allow withdrawal **with liberty to file a fresh suit** if the suit would fail for a **formal defect** or there are **sufficient grounds** — limitation runs as if the first suit was never filed (r.2)
- **r.3 compromise** — a lawful agreement/compromise in **writing, signed by the parties**, is recorded and a **decree** passed accordingly · **r.3A** no separate suit to set aside a compromise decree on the ground that it was **unlawful** (challenge it before the same court)
- **r.4** these rules don't apply to **execution** proceedings

***Bar to further suit (S.12)**: a suit barred under O.XXIII r.1 can't be re-filed in any court.*

PART A · SHORT NOTE

Other sections of the Limitation Act (whole Act is in the syllabus)

Section	Rule in simple words
2	definitions — '**period of limitation**' (Schedule period) and '**prescribed period**' (as computed under the Act); applicant, plaintiff, defendant, **easement**, good faith (S.2(h): with due care & attention)
10	suits against **trustees** (express trust) to follow **trust property** in their hands — no limitation
11	suits on contracts made **outside India** — Indian limitation applies; a foreign limitation law is a defence only if it **extinguished** the contract and the parties were domiciled there
25	easement by prescription: light, air, way, water or any other easement enjoyed **peaceably, openly, as of right, without interruption for 20 years** (30 against the **Govt**) becomes **absolute** — the 20 years must end within **2 years before** the suit in which the right is contested
26	**exclusion in favour of a reversioner** of a servient tenement (life interest / lease over 3 years)
29	**savings**: S.4–24 apply to **special and local laws** unless expressly excluded; nothing affects **Contract Act S.25**; Indian Easements Act areas excluded from S.25
30	suits barred under the old 1908 Act: short time given when the new Act came into force
31	the Act **does not revive** a right already barred under the old law

***Easement trick: 20 years** (30 against Govt) — peaceful · open · as of right · uninterrupted.*

🧠 *Memory trick*

Safety-net keywords: **1908 · 158 + 51 · 22–25 transfer · O.XII r.6 · O.XIII r.8 impound · O.XIX r.3 knowledge · 3 adjournments · ₹3,000 S.35A · S.144 · S.151**.

Maxims with their bare-act home

Maxim	Meaning	Where it lives in the law
Ubi jus ibi remedium	where there is a right there is a remedy	S.9 CPC — every civil right has a court
Res judicata pro veritate accipitur	a decided matter is accepted as true	S.11 CPC
Nemo debet bis vexari pro una et eadem causa	no one shall be vexed twice for the same cause	S.11, O.II r.2 CPC
Interest reipublicae ut sit finis litium	public interest requires an end to litigation	S.11 CPC; Limitation Act (S.3)
Res sub judice	a matter under judicial consideration	S.10 CPC
Audi alteram partem	hear the other side	S.27, O.V (summons); O.IX r.13; O.XXXIX r.3 (ex parte notice)
Dominus litis	the plaintiff is master of the suit	O.I r.10 CPC (choice of parties)
Actio personalis moritur cum persona	a personal action dies with the person	O.XXII r.1 CPC; S.306 Indian Succession Act
Actus curiae neminem gravabit	an act of the court shall prejudice no one	S.144 (restitution), S.152 CPC
Ex debito justitiae	as a matter of right / debt of justice	S.151 CPC (inherent powers); O.IX r.13
Lis pendens	pending litigation binds transferees	S.52 Transfer of Property Act; O.XXXIX
Vigilantibus non dormientibus jura subveniunt	law helps the vigilant, not the sleepers	Limitation Act, 1963 (S.3)
Nullum tempus occurrit regi	time does not run against the Crown	Art. 112 Limitation Act (30 years for Govt)
Lex non cogit ad impossibilia	law does not compel the impossible	S.4 Limitation Act (court closed)
Nec vi, nec clam, nec precario	not by force, not secretly, not by permission	S.27 & Art. 65 Limitation Act (adverse possession)
Functus officio	the court has done its job	S.114 CPC — no re-hearing except review

Numbers to remember

30 days summons to issue / WS	**90 days** WS outer limit (directory)	**120 days** WS commercial (mandatory)	**15 days** witness list	**3** adjournments max
30 → 60 days for judgment	**30 days** decide ex parte injunction	**3 months** jail for disobedience	**90 days** caveat life	**₹ 50,000** S.95 compensation
2 months S.80 notice	**3 months** execute vs Govt (S.82)	**3 m / 6 w / nil** detention (S.58)	**₹ 1,000 + ⅔** salary exempt (S.60)	**90 / 30 days** appeal to HC / district
₹ 25,000 no 2nd appeal (S.102)	**90 + 60 days** bring LRs / set aside abatement	**12 years** possession (Art. 65)	**30 years** Govt suits (Art. 112)	**3 years** max extension, disability (S.8)

Last-night list — one line per cluster

#	Revise only this
1	S.9 + Dhulabhai; P-T-S-O; S.15–20 place table; S.21 objections.
2	S.11 D-S-T-C-F + Expl. IV, VI; S.10; RJ v sub judice table; Satyadhyan, Daryao, Forward Construction.
3	O.I r.1, 3, 8, 9, 10; necessary v proper (Kasturi); O.II r.2; O.XXII 90/60 days.
4	S.27 + O.V ladder P-F-C-A-S; r.17/20 for evaders; S.133 President.
5	O.VI r.2 F-M-N-C; O.VII r.1 nine items; return v rejection table; r.17 + proviso; T. Arivandandam.
6	O.VIII r.1, 3–5; set-off conditions; legal v equitable; set-off v counter-claim; Ashok Kalra.
7	O.IX table; r.9 v r.13; 30 days; Bhanu Kumar Jain.
8	Stages ladder (13 steps); S.2(2), 2(9), 2(12), 2(14); kinds of decree; O.XX 30/60.
9	O.XXXIX P-B-I; r.3, 3A, 2A; receiver O.XL; commission O.XXVI; O.XXXVIII; S.148A.
10	S.51 D-A-A-R-O; S.51 proviso + Jolly George; S.56, 58; S.60 list; O.XXI r.30.
11	S.79–82 (2-2-3); S.80(2)(3); Ghanshyam Dass (LR needs no fresh notice); GHMC S.685 one month; S.91, 92 AG or 2 with leave.
12	O.XXXII next friend v guardian ad litem, r.7 leave; O.XXXIII r.1 ₹1,000 test, r.5, 9, 10–11; S.88 S-N-R-C; O.XXXV r.5.
13	S.96 v S.100 table; O.XLI 5/22/23/27; S.114 three grounds; S.115 three errors + proviso; S.113.
14	C-V-E-P object; principles; S.3, 4, 9, 27; Bombay Dyeing; Ravinder Kaur Grewal.
15	S.5 + Katiji; S.6–8 M-I-I (not jail); S.12–17 table; S.18 v S.19 (W-S-B); Shapoor Freedom Mazda.
16	Skim the safety-net boxes once: transfer, admissions, documents, affidavits, adjournments, costs, minors, O.XXIII, S.144, 151, Limitation S.10, 11, 25.

All the best for the exam! 🙏

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